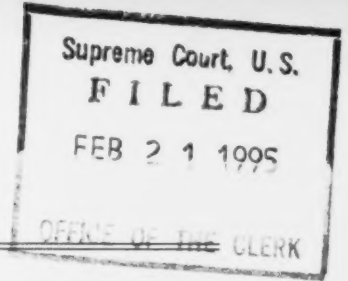


(1)
No. 94-688



In The
Supreme Court of the United States

October Term, 1994

NATIONAL PRIVATE TRUCK COUNCIL, INC.,
WESTINGHOUSE ELECTRIC CORPORATION,
and ROY E. GRIFFIS,

Petitioners,

v.

OKLAHOMA TAX COMMISSION, *et al.*,

Respondents.

On Writ Of Certiorari To The
Supreme Court Of Oklahoma

JOINT APPENDIX

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Petition For Certiorari Filed – October 17, 1994
Certiorari Granted – January 6, 1995

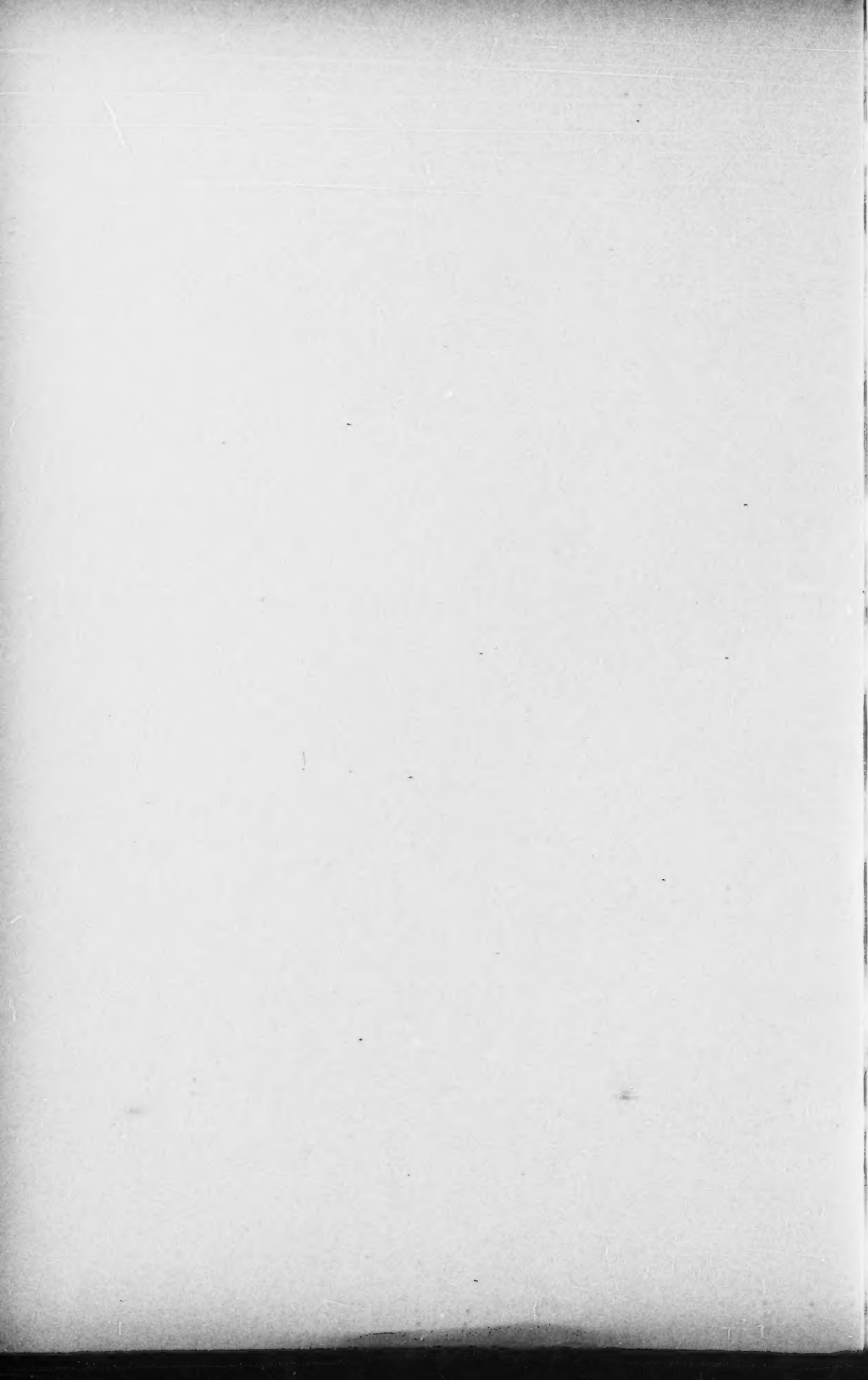


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CIVIL ACTION DOCKET
CLERK OF COURT

OKLAHOMA COUNTY, OKLAHOMA

JUDGE
HON. JOHN M. AMICK

FILE DATE
12/17/84

CASE-ID
CJ-OK-84-009902-14

CIVIL

PLAINTIFF/ATTORNEY
PRIVATE TRUCK COUNCIL OF AMER ET AL
FRATES, KENT F

DEFENDANT/ATTORNEY
ST OF OK,OK TAX COMM ET AL ET AL
NO ATTORNEY

DATE *** PROGRESS IN CASE ***

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AUG 30 94	R:1597 2091:
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 APR 29 87 RESPONSE TO THE ATTY GENERAL TO
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 MAR 27 87 RESPONSE TO PETITION IN ERROR &
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 MAR 19 87 DEPOSITION OF: ROGER HURLEY
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 MAR 19 87 TOTAL AMT. RECVD. - CHECK (#008570)
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		R002	74.00
DEC 17 84	RETURN OF SERVICE CHARGE		
		AC12	4.00
DEC 17 84	SUMMONS ISSUED - PPS		
DEC 17 84	RETURN OF SERVICE CHARGE		
		AC12	4.00
DEC 17 84	SUMMONS ISSUED - PPS		
DEC 17 84	RETURN OF SERVICE CHARGE		
		AC12	4.00
DEC 17 84	SUMMONS ISSUED - PPS		

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		AC12	4.00
DEC 17 84	SUMMONS ISSUED - PPS		
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		AC12	4.00
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DEC 17 84	RETURN OF SERVICE CHARGE		
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		AC03	3.50
DEC 17 84	COURT DOCKET FEE		
		AC02	3.00
DEC 17 84	PETITION		
		AC01	43.50

	BALANCE DUE:		.00

DATE: 1/30/95

OKLAHOMA APPELLATE COURTS
DOCKET FOR APPEAL CV68401
AS OF 02/01/95

COUNTY OKLAHOMA CASE NUMBER CJ49902
TRIAL COURT: DISTRICT
TYPE: DC TRIAL COURT JUDGE: JOHN AMICK

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DOCKET INFORMATION

TOP OF DOCKET

02-06-87 DATE OF ORDER APPEALED
03-09-87 CK REC'D FROM WILLIAM B ROGERS &
ASSOC \$100
03-09-87 CERTIFICATE OF APPEAL ISSUED
03-09-87 PETITION IN ERROR
03-09-87 APPELLANT AGREEABLE TO SETTLEMENT
CONFERENCE
03-09-87 MOTION TO RETAIN
03-27-87 RESPONSE TO PETITION (ASSOC. MOTOR
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03-27-87 APPELLEE AGREEABLE TO SETTLEMENT
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03-30-87 RESPONSE TO PETITION (OKLA. TAX
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04-09-87 APPLICATION OF OKLA. A.G. TO FILE RESP
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- 04-10-87 JE: ATTY GEN TO 4-29-87 TO FILE RESP TO PET.; N/ATTYS.
- 04-29-87 RESPONSE TO PETITION
- 08-05-87 NOTICE OF COMPLETION
- 10-05-87 BRIEF IN CHIEF OF APPELLANTS
- 11-16-87 ANSWER BRIEF OF OKLA TAX COMM
- 11-16-87 BRIEF IN CHIEF OF INTERVENOR
- 11-16-87 APPLIC OF AG FOR EXT OF TIME TO FILE BRIEF
- 11-17-87 JE: ORDER, DOOLIN, CJ-APLEE, OKLA. AG, GRANTED TO 12/7/87 TO FILE BRIEF. TIME FOR ATRB WILL COMMENCE RUNNING ON FILING OF OKLA AG'S BRIEF. N/ATTYS
- 12-04-87 ANSWER BRIEF OF THE OKALHOMA [sic] A.G.
- 12-23-87 APPLICATION OF APPELLANT PRIVATE TRUCK FOR EXT OF TIME TO FILE ATRB
- 01-11-88 REPLY BRIEF OF APLNTS
- 04-11-88 RECORD ORDERED FROM DISTRICT COURT.
- 05-16-88 RECORD ORDERED FROM DISTRICT COURT.
- 05-26-88 ORIG. RECORD OF 504 PGS, TRANS. 1-29-85 OF 5 PGS.
- 06-10-88 LETTER FROM APLNT'S ATTY, WM ROGERS W/ATTCHD U.S.S.C DECISN
- 06-15-88 CAUSE SUBMITTED TO COURT (BR)
- 08-19-88 LETTER FROM WM. ROGERS RE: NEW JERSEY APPELLATE DIVISION W/ATTCHD PLEADING
- 08-26-88 JE: APLNTS' & APLEES' MOTIONS TO RETAIN GRANTED. N/ATTYS

- 01-26-90 APLEE'S SUGGESTION OF ADD'L CASE AUTHORITY
- 02-05-90 PLAINTIFFS' (APP'TS') RESPONSE TO SUGGESTION
- 06-28-90 JE: OPIN REVERSED & REMANDED DOOLIN, J CONCUR: HARGRAVE, CJ, SIMMS, DOOLIN, KAUGER, SUMMERS, JJ CONCUR I/RESULT: LAVENDER, J CONCUR I/PRT; DISSENT I/PRT: OPALA, VCJ DISSENT: HODGES, J C/ATTYS LISTED - HON. J. AMICK - OBJ - WEST - CCH - MDC - PRESS
- 06-28-90 REVERSED AND REMANDED; OPINION
- 07-18-90 APLEE'S APPL FOR EXTN OF TIME TO FILE PET FOR REHRG
- 07-20-90 JE: ON JOINT APPL APLEES OKLA TAX COMM & A.G. GRANTED TO 8-8-90 TO FILE FOR REHRG & BFSP. C/ATTYS
- 08-08-90 APLEE'S PETITION FOR REHRG & BRIEF IN SUPPORT
- 08-08-90 APPELLEE'S PETITION FOR REHEARING & BFSP (TAX COMM)
- 09-06-90 APLNT'S BRIEF IN OPPOSITION TO PET FOR REHRG
- 09-25-90 JE: ORDER OPIN OF 6-28-90 AMENDED AS FOLLOWS, ETC. IN ALL OTHER RESPECTS OPIN OF 6-28-90 SH/REMAIN UNAFFECTED BY THIS ORDER, CONCUR: HARGRAVE, CJ, SIMMS, DOOLIN, KAUGER, SUMMERS, JJ CONCUR I/PRT; DISSENT I/PRT: OPALA, VCJ, LAVENDER, J C/SAME AS OPIN
- 09-27-90 JE: CORRECTED ORDER GRANTING REHEARING FOR LIMITED PURPOSE OF

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PART; COPIES AS OPINION.

- 10-17-90 JOINT APPL FOR EXTN OF TIME TO FILE
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- 10-24-90 JOINT PETITION FOR REHEARING OR
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- 03-05-91 JE: ORDER OF CLARIFICATION, OPALA, CJ:
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SIMMS, DOOLIN, HARGRAVE, WILSON &
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- 03-28-91 MANDATE ISSUED
- 04-05-91 RECEIPT FOR MANDATE
- 04-22-91 NOTICE FROM U.S.S.C ON FILING OF PET
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- 05-16-91 RECORD RECEIVED FROM COURT.
- 05-20-91 RECORD RETURNED TO DISTRICT COURT
- 07-02-91 LETTER FROM U.S.S.C. JE: PET FOR CERT
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- 07-03-91 JE: ORDER, OPALA, CJ: CT. CLERK TO FOR-
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- 07-10-91 ORIG. RECORD OF 503 PGS, TRANS. 1-29-85
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- 07-15-91 CAUSE SUBMITTED TO COURT 676
- 08-05-91 LETTER FROM U.S.S.C. W/ATTCHD CERT
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- 07-20-92 MOTION TO REMAND
- 10-14-92 LETTER FROM R.ALLEN, APLNT'S ATTY RE:
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- 12-27-93 LETTER FROM R.ALLEN, APLNT'S ATTY
- 02-24-94 JE: PARTIES DIRECTED TO FILE SIMUL-
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TION OF FOREGOING ISSUES. ALL JUSTICES
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- 03-11-94 APLNTS' BRIEF ON THE ISSUES PRESENTED
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- 03-11-94 BRIEF FOR OKLA. TAX COMMISSION
- 03-31-94 APLNT'S REPLY BRIEF
- 07-19-94 JE: OPINION JUDGMT REINSTATED PER
CURIAM CONCUR: HODGES, CJ, LAVEN-
DER, VCJ, SIMMS, HARGRAVE, WATT, JJ.
CONCUR N/PRT DISSENT N/PRT: KAUGER,
SUMMERS, JJ. DISSENT: OPALA, WILSON, JJ
COPIES TO ATTYS LISTED D.C. JUDGE
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*****TYPE MANDATE*****
- 07-19-94 JE: WILSON, J., W/WHOM OPALA, J., JOINS
DISSENTING ETC., C/SAME AS OPIN
- 07-22-94 LETTER FROM S. JOHNSTON RE: TYPO
I/OPIN

08-19-94 MANDATE ISSUED
 08-31-94 RECEIPT FOR MANDATE
 09-09-94 RECORD RECEIVED FROM COURT.
 10-04-94 RECORD RETURNED TO DISTRICT COURT
 10-11-94 NOTICE OF ADDRESS CHANGE (OF WM B.
 ROGERS)
 10-24-94 NOTICE OF FILING PETITION FOR CER-
 TIORARI W/U.S.S.C.
 10-26-94 CORRECTED NOTICE OF ADDRESS
 CHANGE

IN THE DISTRICT COURT OF OKLAHOMA COUNTY
STATE OF OKLAHOMA

PRIVATE TRUCK COUNCIL OF
AMERICA, INC.,
WESTINGHOUSE ELECTRIC
CORPORATION, and
ROY E. GRIFFIS,

No. CJ-84-9902

On behalf of themselves and All
Others Similarly Situated,

Plaintiffs,

v.

STATE OF OKLAHOMA,
OKLAHOMA TAX COMMISSION,
ODIE A. NANCE, Individually
and as Chairman,
Oklahoma Tax Commission,
ROBERT L. WADLEY, Individually
and as Vice-Chairman,
Oklahoma Tax Commission,
J. L. MERRILL, Individually
and as Secretary-Member,
Oklahoma Tax Commission,
and LEO WINTERS, Individually
and as State Treasurer
of Oklahoma,

Defendants.

PETITION

1. In this class action, plaintiffs seek declaratory and injunctive relief and refunds of unlawfully exacted fees and taxes on behalf of themselves and all others similarly situated. Plaintiffs challenge the lawfulness of

68 O.S. (Supp. 1983) §607.1 and 47 O.S. (Supp. 1983) §22.5j(K), under which the defendant Oklahoma Tax Commission ("Commission") has imposed "retaliatory" taxes and fees on motor carriers whose vehicles are registered in other states. Because these taxes and fees are not imposed on motor carriers whose vehicles are registered in Oklahoma, plaintiffs contend that they discriminate against interstate commerce and otherwise violate plaintiffs' rights under the Commerce Clause, Article I, Section 8, Clause 3, of the United States Constitution; the Privileges and Immunities Clause of Article IV, Section 2, Clause 1, of the United States Constitution; and Section 1983 of Title 42 of the U.S. Code.

PARTIES

2. Plaintiff Private Truck Council of America, Inc. (PTCA), is a nonprofit business association incorporated under the laws of New York State. It has its principal place of business in Washington, D.C. PTCA is comprised of over 1,800 companies presently operating trucks and related equipment as a private carriers within the scope and in furtherance of their own manufacturing, processing or other businesses, and associated companies. A large number of PTCA's member companies, operating thousands of vehicles in interstate commerce through the state of Oklahoma, register their vehicles in states against which Oklahoma retaliates under the authority contained in Sections 607.1 and 22.5j. As such, these companies have been or will be required to pay the retaliatory taxes and fees imposed by the Oklahoma Tax Commission.

3. Plaintiff Circle W. Transportation, Inc., a wholly-owned subsidiary of Westinghouse Electric Corporation is a Delaware corporation with its principal place of business in North Huntingdon Pennsylvania. It operates numerous vehicles, all of which are authorized to operate in the State of Oklahoma. Fifteen of those vehicles are registered in Pennsylvania and are therefore subject to the retaliatory taxes and fees imposed under Sections 607.1 and 22.5j.

4. Plaintiff Roy E. Griffis is an unincorporated motor carrier whose principal place of business is in Bearden, Arkansas. Griffis operates one vehicle, which is duly authorized to operate in the State of Oklahoma. Those vehicles are registered in Arkansas and are therefore subject to the retaliatory taxes and fees imposed under Sections 607.1 and 22.5j.

5. Defendant Oklahoma Tax Commission (hereinafter "Commission") is the State agency which has authority, pursuant to 68 O.S. (1983 Supp.) §607.1(B) and 47 O.S. (1983 Supp.) §22.5j(K), to adopt rules and regulations implementing the retaliatory taxes and fees authorized in Sections 607.1 and 22.5j. The Commission is also the state agency which assesses, collects, and enforces those retaliatory taxes and fees.

6. Defendants Odie A. Nance, Robert L. Wadley, and J. L. Merrill are, respectively, the Chairman, Vice Chairman, and Secretary-Member of defendant Oklahoma Tax Commission.

7. Defendant Leo Winters is the State Treasurer of Oklahoma. The State Treasurer administers the State Highway Construction and Maintenance Fund and the

Oklahoma Tax Commission Fund, in which much of the proceeds of the retaliatory taxes and fees imposed under Sections 607.1 and 22.5j are deposited.

THE CLASS

8. Pursuant to 12 O.S. (1984 Supp.) §2023 of the Oklahoma Statutes, plaintiffs bring this action on behalf of themselves and all other nonresident motor carriers operating through the State of Oklahoma whose vehicles are registered in states against which Oklahoma retaliates pursuant to Sections 607.1 and 22.5j, and which have therefore paid or will pay the retaliatory taxes and fees imposed under those sections. The parties comprising the plaintiff class include hundreds of interstate motor carriers and thus are so numerous as to make joinder impracticable. The claims of law and fact are common to all members of the class and the plaintiffs will fairly and adequately represent the interests of all class members. Moreover, a class action is superior to other available methods of adjudicating the controversy.

JURISDICTION

9. This Court has jurisdiction over this action under 68 O.S. 1981 §226(c) and 12 O.S. 1981 §§1651 *et seq.*

FACTS

10. The State of Oklahoma imposes several taxes and fees on motor carriers which operate within the State of Oklahoma. Most of those are paid by all motor carriers which use the State's roads, regardless of their state of

registration. For example, Oklahoma imposes a fee for the registration of all trucks and related equipment which operate in Oklahoma. 47 O.S. 1981 §22.5a *et seq.* Oklahoma also imposes a tax on the consumption of motor fuel within the State. 68 O.S. 1981 §501 *et seq.* This tax is based on the percentage of a carrier's mileage in Oklahoma and the amount of fuel consumed within the State. The fuel tax is paid by all motor carriers, including Oklahoma-based carriers, regardless of their state of registration.

11. In addition to these taxes, effective July 1, 1982 the Oklahoma Legislature amended the Oklahoma motor fuel tax code by adding a new tax solely on nonresident motor carriers as follows:

In addition to those taxes or fees imposed by Articles 5, 6 and 7 of this title, the same or substantially the same type or category of tax or fee may be imposed upon an out-of-state resident as is imposed upon residents of Oklahoma for the same or substantially similar use of a vehicle in such other state in the amount, or approximate total amount, of any fee or tax, including property, motor fuel, exercise, sales, use or mileage tax required by the laws of such other state to be paid by a resident of this state making the same or similar use of a like vehicle in such state.

68 O.S. (Supp. 1983) §607.1(A).

12. Virtually identical language providing for an identical tax was added to the registration and licensing code shortly thereafter:

In addition to those taxes or fees imposed by Sections 22.1 through 22.34 of this title, the same or substantially the same type or category of tax or fees may be imposed upon an out-of-state resident as is imposed upon residents of Oklahoma for the same or substantially similar use of a vehicle in such other state in the amount, or approximate total amount, of any fee or tax, including property, motor fuel, excise, sales, use or mileage tax required by the laws of such other state to be paid by a resident of this state making the same or similar use of a like vehicle in such state.

47 O.S. (1983 Supp.) §22.5j(K).

13. These statutes authorize the Oklahoma Tax Commission to monitor the taxes and fees imposed on Oklahoma carriers by other states and to adopt rules and regulations implementing retaliatory taxes and fees against other states as it sees fit. The statutes further provide that the proceeds of the retaliatory taxes and fees collected under Section 607.1 shall be divided between the Oklahoma Tax Commission Fund, the State Highway Construction and Maintenance Fund, and the various counties of the State, in the manner described in 68 O.S. (1983 Supp.) §602.1. They further provide that the proceeds of retaliatory taxes collected under Section 22.5j shall be divided between the Oklahoma Tax Commission Fund, the various counties of the State, the County Road Fund, and the cities and incorporated towns of the State, in the manner described in 47 O.S. (1983 Supp.) §22.2A.

14. Beginning in 1983, the Oklahoma Tax Commission implemented sections 607.1 and 22.5j by requiring

non-resident motor carriers from 24 states to pay retaliatory taxes and fees, which it denominated "reciprocity fees", and to obtain a "reciprocity certificate" from the Motor Fuel Division of the Tax Commission. Effective January 1, 1985, the Commission has added one additional state whose carriers must pay these retaliatory fees. These fees take the form of annual "fuel marker fees", imposed on vehicles registered in 19 states, which vary from \$1.00 to \$50.00 depending on the state in which the vehicle is registered; an annual mileage use tax of \$175.00 on vehicles of over 73,280 pounds registered in one state, Arkansas; an annual axle tax of \$36.00 per axle on vehicles registered in one state, Pennsylvania; and "trip fees" ranging from one to eight cents per mile operated in Oklahoma on vehicles registered in eight states. See Exhibit A.

15. Motor carriers whose vehicles are registered in the State of Oklahoma pay no fees or taxes pursuant to Sections 607.1 and 22.5a for their use of the State roads.

16. Plaintiff Circle W Transportation, Inc. paid the State of Oklahoma an annual axle tax of \$1,080 for th [sic] year 1984 with respect to its vehicles registered in Pennsylvania that operated in Oklahoma in 1984. Plaintiff Roy E. Griffis, whose vehicle is registered in Arkansas, paid an annual mileage use tax of \$175 and an annual fuel market fee of \$10 in 1984.

17. Plaintiffs Circle W Transportation, Inc. and Roy E. Griffis have given notice to the tax Commission of their intent to file suit for the recovery of such tax pursuant to 68 O.S. 1981 §226(b) Exhibit B).

COUNT I

Unlawful Burden On Interstate Commerce

18. Plaintiffs repeat and reallege the allegations contained in paragraphs 1 through 17 as if fully set forth herein.

19. The retaliatory taxes and fees imposed on plaintiffs and the plaintiff class pursuant to Sections 607.1 and 22.5j constitute an unlawful burden on interstate commerce in violation of the Commerce Clause of Article I, Section 8, Clause 3 of the United States Constitution because they are imposed only on motor carriers registered outside the State of Oklahoma, while no comparable tax or fee is imposed on carriers registered in the State of Oklahoma. As such, the state by its taxing scheme favors domestic enterprises over enterprises from other states. Oklahoma's retaliatory taxes and fees further impose an unlawful burden on interstate commerce because they vary in amount depending on the particular state of vehicle registration. On its face, therefore, the tax discriminates against interstate commerce. Moreover, the amount of the tax does not bear a reasonable relationship to the services provided by the State in connection therewith.

COUNT II

Denial of Privileges and Immunities

20. Plaintiffs repeat and reallege the allegations contained in paragraphs 1 through 17 as if fully set forth herein.

21. The retaliatory taxes imposed pursuant to Sections 607.1 and 22.5j constitute a denial of the privileges and immunities of plaintiffs and the plaintiff class, whose vehicles are registered outside the State of Oklahoma, because it imposes a tax on them solely because of their residence in another state. No comparable tax is imposed on residents of Oklahoma. Accordingly, these taxes discriminate against non-residents in violation of the Privileges and Immunities Clause of Article IV, Section 2, Clause 1.

COUNT III

42 U.S.C. §1983

22. Plaintiffs repeat and reallege the allegations contained in paragraphs 1 through 17 as if fully set forth herein.

23. The actions of defendants set forth in Counts I and II above have been and will continue to be taken under color of state law, custom and usage and threaten to deprive plaintiffs of rights secured to them by the United States Constitution. Defendants are therefore liable to plaintiffs pursuant to 42 U.S.C. §1983.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs pray that this Court grant them:

(a) A declaratory judgment pursuant to 12 O.S. 1981 §1651 declaring that the retaliatory taxes imposed pursuant to 68 O.S. (Supp. 1983) §607.1 and 47 O.S. (Supp.

1983) §22.5j(K) violate the United States Constitution and other federal law and are therefore null and void;

(b) A permanent injunction enjoining the defendant Oklahoma Tax Commission from assessing or collecting retaliatory taxes and fees on non-resident motor carriers under 68 O.S. (Supp. 1983) §607.1 and 47 O.S. (Supp. 1983) §22.5j(K);

(c) Refunds of all retaliatory taxes and fees collected by the Oklahoma Tax Commission pursuant to 68 O.S. (Supp. 1983) §607.1 and 47 O.S. (Supp. 1983) §22.5j(K) prior to the effectiveness of this Court's judgment, with interest;

(d) Attorneys' fees as provided under 12 O.S. 1981 §18(C) and 42 U.S.C. §1988, and costs of this action; and

(e) Such other and further relief as this Court may deem just.

OF COUNSEL:

BILLIG, SHER & JONES,
P.C.

2033 K Street, N.W.

Suite 300

Washington, D.C. 20006

/s/ Richard A. Allen

Jacob P. Billig

Richard A. Allen

David F. Smith

Billig, Sher

& Jones, P.C.

2033 K Street, N.W.

Suite 300

Washington, D.C.

20006

(202) 429-9090

/s/ _____

Kent F. Frates

Colcord Building

Suite 600

15 North Robinson

Oklahoma City,

Oklahoma 73102

(405) 272-0616

Attorneys for Plaintiffs

Dated: December 17, 1984

ODIE A. NANCE, Chairman
 ROBERT L. WADLEY, Vice Chairman
 J. L. MERRILL, Sec'y-Member

	OKI
	Due 1/1/84
	Annual
	Fuel Marker Fee
Alabama	<u>\$12.00</u>
Arizona	
Arkansas	\$10.00
Connecticut	\$10.00
Delaware	\$10.00
Florida	\$ 8.00
Georgia	\$ 3.00
Idaho	\$ 1.00
Kentucky	\$10.00
Maine	\$15.00
Maryland	\$25.00
Massachusetts	\$14.00
Mississippi	\$12.00
New Hampshire	\$10.00
New Jersey	\$ 6.00 25.00
New Mexico	\$ 2.00
New York	-
North Caroline	\$10.00
Nevada	
Ohio	

Ohio o

Oregon	
Pennsylvania	\$ 5.00
Vermont	\$50.00
West Virginia	\$10.00
Louisiana	<u>\$12.00</u> 1/

States that Oklahoma has imposed a similar tax.

DIVISION

Annual
Axle Tax

**Trip
Fee**

8¢ mile

60,000# or over

4½¢/mile
3¢/mile

9/1/84

(Household Movers Exempt)

3¢/mile
4¢/mile

(Truck 3 or more axles - - - - -)
 (Tractor Semitrailer Comb. 3 axles - - - - -)
 (Tractor Semitrailer Comb. 4 axles - - - - -)
 (Tractor Semitrailer Comb. 5 axles - - - - -)
 (Truck-Trailer Comb. 4 or more axles - - - - -)

$2\frac{1}{4}\text{¢/mile}$
 1¢/mile
 1¢/mile
 $1\frac{1}{2}\text{¢/mile}$
 2¢/mile
 $2\frac{1}{2}\text{¢/mile}$
 8¢/mile

(Due 4/1/84
(\$36.00 per axle
(PA only

/85



EXHIBIT B
LAW OFFICES
BILLIG, SHER & JONES, P.C.
SUITE 300
2033 K STREET, N.W.
WASHINGTON, D.C. 20006

RICHARD A. ALLEN	TEL. (202) 429-9090
JOHN R. ATTANASIO	CABLE: BISJO
JACOB P. BILLIG	TELEX: 89-569
JOHN A. DeVIerno	
MARC J. FINK	
TERRENCE D. JONES	
KELLY A. KNIGHT	
JEFFREY F. LAWRENCE	
WARRANT L. LEWIS	
MICHAEL G. ROBERTS	
STANLEY O. SHER	
DAVID F. SMITH	
JULIAN H. SPIRER	

December 14, 1984

Mr. Odie Nance
Chairman
Oklahoma Tax Commission
2501 Lincoln Blvd.
Oklahoma Way, Oklahoma 73105

Re: Notice of Intent to File Suit To
Challenge the Constitutionality
of Retaliatory Taxes Paid
Pursuant to 68 O.S. (Supp. 1983)
§607.1 and 47 O.S. (Supp. 1983)
§22.5j(K)

Dear Mr. Nance:

On behalf of our clients the Private Truck Council of America, Inc., Circle W. Transportation, Inc. and Roy E. Griffis and all other similarly situated motor carriers that are subject to the retaliatory taxes imposed by 68 O.S. (Supp. 1983) §607.1 and 47 O.S. (Supp. 1983) §22.5j(K), I hereby give notice pursuant to 68 O.S. (1981) §226(b) of their intent to file suit to recover taxes paid, to seek a declaratory judgment that such taxes are unconstitutional because they violate the Commerce Clause and the Privileges and Immunities Clause of the United States Constitution and that they violate 42 U.S.C. § 1983, and to seek a permanent injunction against the assessment, collection and enforcement of such taxes.

Private Truck Council of America, Inc., (PTCA) is a nonprofit business association incorporated under the laws of New York State. It has its principal place of business in Washington D.C. PTCA is comprised of over 1,800 companies presently operating trucks and related equipment as private carriers within the scope and in furtherance of their own manufacturing, processing or other businesses, and associated companies. A large number of PTCA's member companies, operating thousands of vehicles in interstate commerce through the state of Oklahoma, register their vehicles in states against which Oklahoma retaliates under the authority contained in Sections 607.1 and 22.5j. As such, these companies have been or will be required to pay the retaliatory taxes and fees imposed by the Oklahoma Tax Commission.

Circle W. Transportation, Inc., a wholly owned subsidiary of Westinghouse Electric Corporation, is a Delaware corporation with its principal place of business in Norht [sic] Huntington, Pennsylvania. It operates 15 vehicles that are registered in Pennsylvania and many of which have operated and will continue to operate in the State of Oklahoma. It paid retaliatory taxes to the State of Oklahoma for the year 1984 pursuant to 68 O.S. (Supp. 1983) § 607.1(A) and 47 O.S. (1983 Supp.) §22.5j(k) and regulations implemented by the Oklahoma Tax Commission in the amount of \$1,080.

Roy E. Griffis is an incorporated motor carrier whose principal place of business is in Beardon, Arkansas. [sic] Griffis has one vehicle which is registered in Arkansas and which he has operated and will continue to operate in Oklahoma. Mr. Griffis paid retaliatory taxes and fees to the State of Oklahoma in the amount of \$185 on September 25, 1984.

This notice of intent to file suit is filed on behalf of the foregoing and all other motor carriers whose vehicles are registered in states against whom Oklahoma retaliates and which have paid or will be subject to retaliatory taxes imposed by Oklahoma.

Sincerely,

/s/ Richard A. Allen
Richard A. Allen
Attorney for the Private Truck
Council of America, Inc.,
Circle W. Transportation, Inc.
and Roy E. Griffis

RAA/tp

IN THE DISTRICT COURT OF OKLAHOMA COUNTY
STATE OF OKLAHOMA

PRIVATE TRUCK COUNCIL OF	)	
AMERICA INC., et al.,	)	
	)	
Plaintiffs,	)	No. CJ-84-9902
	)	
v.	)	
	)	
STATE OF OKLAHOMA, et al.,	)	
	)	
Defendants.	)	

MOTION TO DROP PARTY DEFENDANT FOR
MISJOINDER AND MOTION TO DISMISS

ODIE A. NANCE, a named defendant in the above titled action, moves the Court to enter an Order herein, pursuant to 12 O.S. Supp. 1984, §2021, dropping said party as a defendant herein, both in his official capacity and as an individual, for the following reasons:

1. This action is brought pursuant to 68 O.S.1981, §226, to recover certain taxes paid under protest, and for injunctive and declaratory relief.

2. The Oklahoma Tax Commission, a named defendant herein, is the sole, necessary and proper party defendant herein. (68 O.S.1981, §226[c])

3. Said Odie A. Nance, as Chairman of the Oklahoma Tax Commission, has no interest in the subject matter or the outcome of this action, other than as provided by statute.

4. The petition filed herein contains no allegations of malice, oppression, or willful misconduct on the part of this defendant; and totally fails to make any allegation

sufficient to subject this defendant to personal liability in the premises.

5. As to this defendant, the petition fails to state a claim upon which relief can be granted.

6. The petition, taken as a whole, totally fails to assert, as against this defendant, any right to relief whatsoever.

WHEREFORE, this defendant has been improperly joined as a party defendant herein; and an Order should be entered dropping said defendant as a party herein, and dismissing this action as to said defendant, both in his official capacity and as an individual.

/s/ Stanley Johnston
 J. LAWRENCE BLANKENSHIP,
 General Counsel, Oklahoma
 Tax Commission
 DONNA E. COX, Attorney
 STANLEY JOHNSTON, Attorney
 2501 Lincoln Boulevard
 Oklahoma City, OK 73194
 (405) 521-3141

Attorneys for Odie A. Nance,
 Individually and as Chairman
 of the Oklahoma Tax Commission

CITATION OF AUTHORITIES:

68 O.S.1981, §226;
 68 O.S. Supp. 1984, §§2012, 2020(2), 2021;
Atlantic Oil Producing Co. v. Sneed, 176 Okl. 303, 54 P.2d 149 (1936); *Mills v. Smith*, 355 P.2d 1064, 82 ALR 2d 1144 (Okl. 1960); *Neal v. Donahue*, 611 P.2d 1125 (Okl. 1980); *Fulton Market Cold Storage Co. v. Cullerton*, 582 F.2d 1071 (7th Cir. 1978).

NOTICE OF MOTION

TO: Jacob P. Billig Richard A. Allen David F. Smith Billig, Sher & Jones, P.C. 2033 K Street, N.W. Suite 300 Washington, D.C. 20006 Attorneys for Plaintiffs	William B. Rogers 6440 Avondale Drive Suite 200 Oklahoma City, OK 73116 Attorney for Plaintiffs Thomas L. Spencer Assistant Attorney General 112 State Capitol Building Oklahoma City, OK 73105 Attorney for State of Oklahoma and Leo Winters, State Treasurer
--	---

Please take notice that the foregoing motion will be presented for hearing before the Honorable John Amick in his courtroom at the Oklahoma County Courthouse, City of Oklahoma City, on the 15th day of February, 1985, at 9:00 o'clock A.m., or as soon thereafter as counsel may be heard.

/s/ Stanley Johnston
 Attorney for Defendant

CERTIFICATE OF MAILING

I hereby certify that on the 28th day of January, 1985, a true and correct copy of the foregoing Motion and Notice of Motion was mailed to the persons named in said Notice, at the addresses therein shown.

/s/ Stanley Johnston

IN THE DISTRICT COURT OF OKLAHOMA COUNTY
STATE OF OKLAHOMA

PRIVATE TRUCK COUNCIL OF)	
AMERICA INC., et al.,)	
Plaintiffs,)	
v.)	No. CJ-84-9902
STATE OF OKLAHOMA, et al.,)	
Defendants.)	

ANSWER OF OKLAHOMA TAX COMMISSION

[Filed 1/28/85]

1. Defendant denies the alleged unconstitutionality of 68 O.S. Supp. 1982, §607.1, and 47 O.S. Supp. 1982, §22.5j(K); and further denies that the plaintiffs' rights have been violated by either the imposition or the application of the taxes and fees provided therein.

2. Defendant is without knowledge or information sufficient to form a belief as to the truth of the averments contained in paragraphs 2, 3 and 4 of plaintiffs' petition.

3. Defendant admits the averments contained in paragraphs 5, 6 and 7 of said petition, insofar as the averments contained therein comport to the capacity and the authority of the defendant to administer the tax laws of the State of Oklahoma, as provided by the statutes and Constitution of this State.

4. Defendant denies that this action is maintainable as a class action as alleged in paragraph 8 of said petition; and requests that plaintiffs be required, upon full hearing pursuant to notice, to show that all of the prerequisites to a class action, as provided by statute, are met herein.

5. As to the remaining numbered paragraphs of plaintiffs' petition, defendant states:

FIRST DEFENSE

6. There are essentially three tiers or structures of tax applied by the states to the operation by motor carriers of motor vehicles within, and for the use of highways within the states' borders. The first two, applied by essentially all states, are: (a) vehicle licensing and registration, and; (b) motor fuel taxes. These two tiers of taxes are, in those states which are members of the International Registration Plan (I.R.P.), apportioned or prorated for registered motor carriers according to the percentage of the carrier's total annual miles driven within the state. Oklahoma, Arkansas and Pennsylvania are each members of the I.R.P.; and each state imposes both of these forms of tax, and apportions and prorates the taxes according to the reciprocal policies of the I.R.P.

7. In addition, there is a third tier or structure of tax enacted by some of the states, which is not apportioned or prorated; and which may take the form of fuel marker fees, mileage or highway use tax, weight-distance tax, axle tax or fees, trip fees, etc. The State of Arkansas imposes such a third-tier, non-apportioned tax, denominated the Highway Use Equalization Tax, which is codified in §75-817.3, Arkansas Statutes, a copy of which is attached as "Exhibit A" hereto and made a part hereof. Under the provisions of said statute, non-resident motor carriers operating in the State of Arkansas must pay a nonapportionable, flat fee of \$175.00 per year; while resident motor carriers, if not otherwise exempt or excluded

by statute, may pay either said flat fee or a lesser amount, at the resident motor carrier's option, computed on such resident motor carrier's mileage driven within the State of Arkansas. Similarly, the State of Pennsylvania has enacted a third-structure tax, denominated an Axle Tax, and codified in 75 Pa.C.S.A., §9901, et seq., a copy of which is attached hereto as "Exhibit B" and made a part hereof. By the provisions of the Pennsylvania axle tax, motor carriers, including carriers base-registered in the State of Oklahoma operating in Pennsylvania, must pay a tax of \$36.00 per axle per year.

8. The imposition of such third-structure taxes upon Oklahoma resident operators of such vehicles constitutes a barrier to the conducting of interstate business by such Oklahoma residents, not encountered in other states where, by reciprocal agreement or otherwise, such third-structure taxes are not imposed upon Oklahoma residents.

9. In order to equalize the burden placed upon such Oklahoma resident or base-registered motor carriers by said third-structure taxes, the Oklahoma Legislature enacted 47 O.S. Supp. 1982, §22.5j(K), and 68 O.S. Supp. 1982, §607.1. The purpose of the two Oklahoma enactments, as stated in the statutes and as reflected in House Concurrent Resolution No. 1001, a copy of which is attached hereto as "Exhibit C" and made a part hereof, was to remove the economic disadvantage imposed upon Oklahoma residents and base-registered carriers, by requiring the base-registered residents of those states such as Arkansas and Pennsylvania, who impose the third-structure taxes, to pay a comparable or "mirror tax"

when such carriers operate within the borders of this State.

10. Pursuant to the Oklahoma Statutes in question, plaintiffs Circle W Transportation Inc. and Roy E. Griffis, have been assessed the taxes as alleged in paragraph 16 of plaintiffs' petition.

11. Defendant denies that plaintiffs are unconstitutionally discriminated against; or that the impact upon and the cost incurred by plaintiffs as a result of the imposition of the Oklahoma tax, constitute an impermissible burden upon or discrimination against the plaintiffs. Rather, defendant asserts that the imposition and impact of said Oklahoma taxes merely equalize the burdens placed upon interstate commerce, and particularly upon Oklahoma base-registered carriers, by the third-structure taxes imposed by said other states.

SECOND DEFENSE

12. Defendant asserts that the proceeds of the taxes herein challenged are used for the construction and maintenance of the roads and highways of this State, and have a reasonable relationship to the services provided by the State of Oklahoma.

13. Defendant denies that the Oklahoma Statutes herein complained of, either in their enactment or their application to plaintiffs, violate the provisions of either the United States Constitution or the Constitution of the State of Oklahoma.

14. Defendant further asserts that the plaintiffs are reasonably classified for the purposes of the taxes herein

challenged; and denies that the imposition of these taxes constitutes a denial of the privileges and immunities of the citizens of the several states.

THIRD DEFENSE

15. Defendant denies that the actions or statutes herein complained of constitute a cause of action cognizable under the Federal Civil Rights Act as contained in 42 U.S.C., §1983.

16. Defendant further denies any allegation or averment contained in said petition which may be inconsistent with the statements and averments contained herein.

WHEREFORE, defendant prays that plaintiffs be denied all relief herein; and that defendant may have its costs and such other relief as may be proper.

/s/ Stanley Johnston
J. LAWRENCE BLANKENSHIP,
General Counsel, Oklahoma
Tax Commission
DONNA E. COX, Attorney
STANLEY JOHNSTON, Attorney
2501 Lincoln Boulevard
Oklahoma City, OK 73194
(405) 521-3141

Attorneys for Oklahoma Tax
Commission

CERTIFICATE OF MAILING

I hereby certify that on the 28th day of January, 1985, a true and correct copy of the foregoing Answer was mailed to:

TO: Jacob P. Billig Richard A. Allen David F. Smith Billig, Sher & Jones, P.C. 2033 K Street, N.W. Suite 300 Washington, D.C. 20006 Attorneys for Plaintiffs	William B. Rogers 6440 Avondale Drive Suite 200 Oklahoma City, OK 73116 Attorney for Plaintiffs Thomas L. Spencer Assistant Attorney General 112 State Capitol Building Oklahoma City, OK 73105 Attorney for State of Oklahoma and Leo Winters, State Treasurer
---	--

/s/ Stanley Johnston

EXHIBIT "A"

75-817.3. Highway use equalization tax.

(a) As used in this Section of this Act, the following terms shall have the following meanings:

(1) "Department" means the Director of the Arkansas State Highway and Transportation Department;

(2) "Division" means the Commissioner of Revenues, Department of Finance and Administration, State of Arkansas;

(3) "Motor Vehicle", as used herein, means all cargo vehicles required to be registered for use upon the public highways of this State, designed, used or maintained primarily for the transportation of property and having a declared gross weight of 73,281 pounds or more. For the purpose hereof, truck-tractors, single unit trucks, semi-trailers and trailers operated in combination thereof shall constitute a single vehicle. The person having the use or control, or the right to the use or control of the part of such a vehicle furnishing the motive power is the highway user with respect to the entire vehicle and is accordingly subject as such to the provisions of this Section of this Act;

(3) [(4)] "Truck" includes the terms "truck" or "truck-tractor" and "semi-trailer" or "trailer" when operated in combination with a truck or truck-tractor;

(4) [(5)] "User" includes any person having the use and control or the right to the use and control, of any motor vehicle;

(5) [(6)] "Highway" includes all highways, roads, and streets of this State generally open to the use of the public as a way for vehicular traffic;

(6) [(7)] "Gross weight" means the actual weight of the truck or truck-tractor, plus the actual weight of the heaviest semi-trailer or trailer or combinations thereof with which it is to be operated in combination plus the actual weight of the heaviest load to be carried thereon.

(7) [(8)] "Arkansas Registered Vehicle" or "Arkansas Registered Truck" means a vehicle registered

in Arkansas by a user who is an Arkansas resident, and bearing an Arkansas license plate.

(b) A tax is hereby imposed upon all users, as defined in Subsection (a), above, of motor vehicles, as herein defined, in compensation for the use of the highways of this State to be known as the "Highway Use Equalization Tax". Such tax shall be in addition to all other taxes now required to be paid on such vehicles except as hereinafter provided.

(c) The Highway Use Equalization Tax shall not apply to any motor vehicle whose declared gross weight, as defined in Subsection (a), above is 73,280 pounds or less, nor to vehicles used exclusively in hauling unfinished and unprocessed farm products, forest products, and clay minerals, and ores, from the point of production, harvesting or severance to the point at which the same shall first undergo any processing, preparation for processing, conversion or transformation from their raw, natural or severed state, nor to any vehicle owned and operated by the United States of America or the State of Arkansas, or any political subdivision thereof.

(d) The provisions of this Section of this Act shall not apply to any motor vehicle used on an interstate trip with an origin or destination within 10 miles of the geographic boundaries of this State, provided the one-way travel distance in the State is not over 10 miles.

(e)(1) The user of every vehicle subject to this Section of this Act and which is an Arkansas registered vehicle, before operating such vehicle over the highways of this State, shall qualify such vehicle with the Division.

Qualifications shall be made by application to the Division on forms to be provided by said Division. Said application maybe filed with the Division at the time of registration of the vehicle.

(2) Such application shall be accompanied by payment to the Division of a fee of five dollars (\$5.00), to be deposited into the Constitutional and Fiscal Agencies Fund, which shall cover the clerical cost of such qualification. Upon receipt of such application and payment of the tax as hereinafter determined, the Division shall make appropriate record of the vehicle qualified and certify such qualification on the applicant's registration certificate or a registration cab card, one of which is to be carried in the cab of the vehicle at all times. The said registration certificate or registration cab card shall, in addition to the registration information and the required certification, show the amount of tax paid for such vehicle as determined by Subsection (f) of this Section.

(f)(1) At the time of such qualification of any Arkansas registered truck subject to this Section which is registered through the International Registration Plan, the Division may fix a mileage rate in cents per mile for each truck so registered and qualified. The Division shall determine the mileage rate, utilizing the gross weight declared in the application for registration of the truck, according to the following table:

<u>Vehicle Weight (pounds)</u>	<u>Mileage Rate (dollars)</u>
73,281-80,000	\$.05

The tax determined under this provision for every truck subject thereto shall be in the amount of the determined

mileage rate multiplied by each mile such truck is operated over the highways of this State, as reported to the Division for registration under the International Registration Plan.

(2) At the time of such qualification of any Arkansas registered truck subject to the provisions of this Section, every user not registered through the International Registration Plan shall pay, and every user registered through the International Registration Plan may elect to pay, an annual mileage tax in lieu of an amount determined by the applicable mileage rate set forth by Subsection (f)(1) of this Section. The Division shall determine such annual mileage tax by utilizing the gross weight declared in the application for registration of the truck, according to the following table:

<u>Vehicle Weight (pounds)</u>	<u>Annual Tax (dollars)</u>
73,281-80,000	\$175

(g) The tax, as determined by either Subsection (f)(1) or Subsection (f)(2) of this Section, shall become due and payable at the time of registration. No license shall be issued, nor operation authority granted, to any Arkansas registered user subject to the provisions of this Act until such time as the full amount of the tax determined to be due under the provisions of this Section, together with all penalties, shall have been paid.

(h) The Division is hereby authorized to collect those taxes and fees imposed by this Section upon the Arkansas registered users subject to the provisions of this Act [§§ 75-817.2, 75-817.3, 75-819(b)], to make timely deposits into the State Treasury of all such moneys collected by the Division, and to administer the provisions

of this Section as they pertain to Arkansas registered users, including the right to inspect and audit at reasonable times at any place within this State the books, records and documents of any Arkansas registered users required to pay the Highway Use Equalization Tax hereby imposed.

(i)(1) The user of any vehicle, subject to the provisions of this Section, may, in lieu of qualification in accordance with the provisions of Subsection (e) of this Section, remit to the Department either an annual mileage tax in an amount determined by Subsection (f)(2) of this Section, or pay an amount determined by the applicable mileage rate set forth in (f)(1) of this Section, or pay a trip permit fee. It is the intent of this Act that all users, subject to the provisions of this Section, must either qualify with the Division as provided in Subsection (e) of this Section and pay the appropriate taxes, or comply with the provisions of this Subsection. Provided, that, all Arkansas registered vehicles must qualify with the Division and remit such taxes to the Division. If the user elects to pay the annual mileage tax, the Department, upon application thereof and receipt of such payment, shall issue an annual mileage tax certificate to the user which shall, by the user, be affixed to the cab of such vehicle. If the user elects to pay an amount determined by the applicable mileage rate set forth in (f)(1) of this Section, the Department shall utilize the appropriate rate multiplied by each mile such vehicle was operated over the highways of this State for the preceding twelve month period based on mileage records of the user acceptable to the Department. Upon payment of such amount, the Department shall issue a certificate to the user, which shall, by the user, be

affixed to the cab of such vehicles. If the user elects to utilize a trip permit, such trip permits for trucks with a gross weight of 73,281 pounds through 80,000 pounds shall be issued at a fee of eight dollars (\$8.00) for each 100 miles of travel, rounded to the nearest 100 miles, whether loaded or unloaded. Said permits shall be issued by the Department in such forms as it deems appropriate.

(j) The tax provided for in this Section of this Act must be paid by the users of all applicable vehicles using the highways of this State, and no reciprocal agreement or agreement of any nature heretofore or hereafter entered into between officials of this State and those of any other State may exempt any user of such vehicles using the highways of this State from the provisions of this Section of this Act and payment of the tax levied by this Section of this Act.

(k) Any user found operating any vehicle subject to the provisions of this Section of this Act over the highways of this State without complying with this Section or without having available in or on the cab thereof of the appropriate certificate or trip permit required by this Section, shall be guilty of a misdemeanor and upon conviction thereof shall be punished by a fine of no less than two hundred dollars (\$200.00) and not more than five hundred dollars (\$500.00) for the first offense and of no less than five hundred dollars (\$500.00) and not more than one thousand dollars (\$1,000.00) for each subsequent offense.

(l) This Section of this Act shall be liberally construed to effectuate the purposes thereof.

(m) All fees, taxes, penalties and interest collected under the provisions of this Section of this Act not specifically classified as "Constitutional and Fiscal Agencies Funds" shall be classified as "special revenues" and shall be deposited in the State Treasury, and the net amount thereof shall be transferred by the State Treasurer on the last business day of each month: 15% of the amount thereof, to the County Aid Fund; 15% of the amount thereof, to the Municipal Aid Fund; and 70% of the amount thereof, to the State Highway Department Fund, such funds to be further disbursed in the same manner and used for the same purposes as is set out in the "Arkansas Highway Revenue Distribution Law." [Acts 1983, No. 685, § 2, p. ____.]

EXHIBIT "B"

CHAPTER 99. - AXLE TAX FOR HIGHWAY BRIDGE IMPROVEMENT

Sec.		Sec.	
9901.	Definitions.	9905.	Rebate in case of incidental travel.
9902.	Imposition of axle tax.	9906.	Penalties
9903.	Report and payment of tax.	9907.	Deposit of proceeds and purpose of tax.
9904.	Axle tax markers required.	9908.	Appropriation.
		9909.	Administration and enforcement.

§ 9901. Definitions

The following words and phrases when used in this chapter shall have the meanings given to them in this section unless the context clearly indicates otherwise:

"Department." The Department of Revenue.

"Motor carrier." Every person who operates or causes to be operated any motor vehicle on any highway in this Commonwealth.

1982, Dec. 8, P.L. 842, No. 234, § 3, effective April 1, 1983.

§ 9902. Imposition of axle tax

In addition to any other tax imposed by law, all motor carriers shall pay an annual tax in the amount of \$36 per axle on every truck, truck tractor or combination having a gross weight or registered gross weight in excess of 26,000 pounds operated on the highways of this Commonwealth.

1982, Dec. 8, P.L. 842, No. 234, § 3, effective April 1, 1983.

Library References

Automobiles 97.

C.J.S. Motor Vehicles § 136.

§ 9903. Report and payment of tax

The tax shall be paid to the department at the time a motor carrier applies for vehicle registration or for the issuance of an identification marker or permit pursuant to section 2102 (relating to identification markers required). No registration card or identification marker or

permit shall be issued unless the tax imposed by section 9902 (relating to imposition of axle tax) has been paid.

1982, Dec. 8, P.L. 842, No. 234, § 3, effective April 1, 1983.

§ 9904. Axle tax markers required

(a) **General rule.** – The Secretary of Revenue shall provide axle tax markers for each truck, truck tractor or combination upon which axle tax has been paid pursuant to section 9902 (relating to imposition of axle tax). The marker must be affixed to the vehicle and displayed as prescribed by regulation prior to the operation of the vehicle in this Commonwealth.

(b) **Issuance of markers.** – The axle tax marker shall be issued for a 12-month period which coincides with the period of validity of either the identification marker or registration referred to in section 9903 (relating to report and payment of tax).

(c) **Penalty.** – Any person who operates or causes to be operated in this Commonwealth any vehicle not displaying the axle tax marker as required by this section commits a summary offense and shall, upon conviction, be sentenced, for a first offense, to pay a fine of not less than \$200 nor more than \$500 and, for each subsequent or additional offense, to pay a fine of not less than \$300 nor more than \$500 or to imprisonment for not more than 90 days, or both.

(d) **Exception.** – This section shall not apply to a person operating a vehicle under a valid permit issued pursuant to section 2102(d)(2) (relating to identification markers required).

1982, Dec. 8, P.L. 842, No. 234, § 3, effective April 1, 1983. As amended 1983, July 7, P.L. 32 No. 19, § 6, imd. effective.

1983 Amendment: Rewrote section which prior thereto read:

"§ 9904. Evidence of payment.

"The issuance of a registration card or vehicle identification marker or permit shall be prima facie evidence that any tax imposed by section 9902 (relating to imposition of axle tax) has been paid."

Section 7 of Act 1983, July 7, P.L. 32, No. 19, provides as follows:

"The provision of sections 1 [§ 102 of this title], 3 [§ 4904 of this title], 4 [§ 4908 of this title], 5 [§ 4921 of this title] and 6 [§§ 4923, 4943 and 9904 of this title] insofar, as it relates to section 4923 of this amendatory act shall be effective only as long as Federal law or the Federal Highway Administration shall require this Commonwealth to allow combinations consisting of a truck tractor and two trailers and combinations in excess of 60 feet in length to be driven on its highways. Notice of a change in the Federal mandate shall be published in the Pennsylvania Bulletin by the Secretary of Transportation and the provisions of this act shall be void 30 days thereafter."

§ 9905. Rebate in case of incidental travel

The full axle tax applies to vehicles which travel at least 2,000 miles annually in this Commonwealth. Vehicles traveling less than 2,000 miles annually may file with the department for an axle tax rebate which shall be supported by such data as may be required by the department

by regulation. The rebate will be calculated in accordance with the following formula:

$$\frac{2,000 - \text{actual miles travelled}}{2,000} \times \text{axle tax paid} = \text{rebate}$$

1982, Dec. 8 P.L. 842, No. 234, § 3, effective April 1, 1983.

§ 9906. Penalties

In addition to any penalties which may be imposed for the failure to register a vehicle or obtain and display an identification marker or special permit, any person who willfully fails to pay the tax imposed by this chapter when due commits a summary offense and, upon conviction shall be sentenced, for a first offense, to pay a fine of not less than \$100 nor more than \$500 and, for each subsequent or additional offense, to pay a fine of not less than \$200 nor more than \$500 or to undergo imprisonment for a term not exceeding 90 days or both.

1982, Dec. 8 P.L. 842, No. 234, § 3, effective April 1, 1983.

§ 9907. Deposit of proceeds and purpose of tax

(a) **General rule.** – Proceeds from all taxes and penalties imposed by this chapter shall be deposited in the Highway Bridge Improvement Restricted Account within the Motor License Fund, which account is hereby created.

(b) **Purpose of tax.** – It is the declared policy of the Commonwealth that the money raised by the tax imposed by this chapter be used, to the greatest extent possible, to provide for the creation of jobs and the rehiring of the

unemployed in this Commonwealth. In order to reach this goal, firms with Pennsylvania-based facilities shall be actively solicited to make bids on contracts to furnish products and materials, including, but no limited to, steel and steel products, to be used in the projects funded through the Highway Bridge Improvement Restricted Account.

1982, Dec. 8 P.L. 842, No. 234, § 3, effective April 1, 1983.

§ 9908. Appropriation

The funds deposited in the Highway Bridge Improvement Restricted Account within the Motor License Fund are hereby annually appropriated out of the account upon authorization by the Governor, for expenditure on bridge rehabilitation, replacement and removal projects pursuant to the act of December 8, 1982 (P.L. 848, No. 235), known as the "Highway-Railroad and Highway Bridge Capital Budget Act for 1982-1983," in accordance with the following priorities:

- (1) The first priority is to the Treasury Department for deposit into the Capital Debt Fund for the payment of debt service on general obligation bonds of the Commonwealth which may be issued from time to time to fund any project described in the "Highway-Railroad and Highway Bridge Capital Budget Act for 1982-1983."

- (2) The second priority is to the Department of Transportation in the event excess funds are available after the annual debt service requirements have been satisfied for:

(i) The non-Federal share of bridge rehabilitation, replacement and removal projects on State-owned bridges and bridges of undetermined ownership on State highways.

(ii) Grants to counties or municipalities to fund up to 80% of the non-Federal share of bridge rehabilitation, replacement and removal projects on county-owned or municipal-owned bridges, and bridges of undetermined ownership on county or municipal highways. The balance of the costs for these bridge projects shall be funded by the respective county or municipality or by private funds.

1982, Dec. 8 P.L. 842, No. 234, § 3, effective April 1, 1983.

§ 9909. Administration and enforcement

(a) **General rule.** – The Departments of Revenue and Transportation shall jointly promulgate any regulations necessary for the proper administration and enforcement of this chapter.

(b) **Appeal procedures.** – The procedures for appeals relating to the tax imposed by this chapter shall be consistent with those contained in Chapter 95 (relating to oil company franchise tax for highway maintenance and construction).

1982, Dec. 8 P.L. 842, No. 234, § 3, effective April 1, 1983.

EXHIBIT "C"

THIRTY-NINTH LEGISLATURE
MOTOR VEHICLES-FEES-TAXES-COLLECTION

H.C. Res. No.1001

A CONCURRENT RESOLUTION URGING THE
OKLAHOMA TAX COMMISSION TO COLLECT
CERTAIN FEES AND TAXES; ENCOURAGING THE
NEGOTIATION OF CERTAIN AGREEMENTS; AND
DIRECTING DISTRIBUTION.

WHEREAS, the 2nd Session of the 38th Oklahoma Legislature enacted House Bill No. 1855, Section 1, Chapter 104, O.S.L. 1982 (68 O.S. Supp. 1982, Section 607.1) and House Bill No. 1853, Section 1, Chapter 155, O.S.L. 1982 (47 O.S. Supp. 1982, Section 22.5j, subsection K), which provide that a use fee or tax may be imposed upon a resident of another state for the operation of vehicles in this state if the other state imposes a similar use fee or tax upon Oklahoma residents for the operation of vehicles in said other states; and

WHEREAS, the collection of said fee or tax is discretionary and the decision to collect the fee or tax is the responsibility of the Oklahoma Tax Commission; and

WHEREAS, Oklahoma residents who must pay a fee or tax in other states are placed at an economic disadvantage because nonresidents do not have to pay a comparable fee or tax in this state; and

WHEREAS, it is the intent of the Legislature that the fee or tax authorized by Section 1, Chapter 104, O.S.L. 1982 (68 O.S. Supp. 1982, Section 607.1) and House Bill No. 1853, Section 1, Chapter 155, O.S.L. 1982 (47 O.S.

Supp. 1982, Section 22.5j, subsection K) be collected from nonresident if the state of residence of said nonresident imposes and collects a similar fee or tax from Oklahoma nonresidents.

NOW, THEREFORE, BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES OF THE 1ST SESSION OF THE 39TH OKLAHOMA LEGISLATURE, THE SENATE CONCURRING THEREIN:

SECTION 1. The Oklahoma Legislature urges the Oklahoma Tax Commission to collect the fees and taxes authorized by Section 1, Chapter 104, O.S.L. 1982 (68 O.S. Supp. 1982, section 607.1) and House Bill No. 1853, Section 1, Chapter 155, O.S.L. 1982 (47 O.S. Supp. 1982, Section 22.5j, subsection K) from nonresident operating vehicles in this state if the state of residency of such nonresident imposes a similar fee or tax upon Oklahoma residents.

SECTION 2. The Oklahoma Legislature further encourages the Oklahoma Tax Commission to negotiate with other states imposing a use fee or tax similar to the fees and taxes authorized by Section 1, Chapter 104, O.S.L. 1982 (68 O.S. Supp. 1982, Section 607.1) and House Bill No. 1853, Section 1, Chapter 155, O.S.L. 1982 (47 O.S. Supp. 1982, Section 22.5j, subsection K) to provide for reciprocity agreements which would exempt Oklahoma residents operating vehicles in other states from such fees or taxes in exchange for exempting residents of other states from the provisions of Section 1, Chapter 104, O.S.L. 1982 (68 O.S. Supp. 1982, Section 607.1) and House Bill No. 1853, Section 1, Chapter 155, O.S.L. 1982 (47 O.S. Supp. 1982, Section 22.5j, subsection K).

SECTION 3. Copies of this resolution shall be dispatched to members of the Oklahoma Tax Commission.

Adopted by the House of Representatives the 7th day of March, 1983.

Adopted by the Senate the 2nd day of May, 1983.

Filed with the Secretary of State May 3, 1983.

IN THE DISTRICT COURT OF OKLAHOMA COUNTY
STATE OF OKLAHOMA

PRIVATE TRUCK COUNCIL OF	)	
AMERICA, INC., CIRCLE W.	)	
TRANSPORTATION, INC., and	)	
ROY E. GRIFFIS,	)	CJ-84-9902
On Behalf of Themselves and all	)	(Filed Jan. 28,
Others Similarly Situated,	)	1985)
Plaintiffs,	)	
v.	)	
STATE OF OKLAHOMA,	)	
OKLAHOMA TAX COMMISSION,	)	
ODIE A. NANCE, Individually as	)	
Chairman of the Oklahoma Tax	)	
Commission, ROBERT L. WADLEY,	)	
Individually and as Vice-Chairman	)	
of the Oklahoma Tax Commission,	)	
J.L. MERRILL, Individually and as	)	
Secretary-Member of the Oklahoma	)	
Tax Commission, and LEO	)	
WINTERS, Individually and as	)	
State Treasurer of Oklahoma,	)	
Defendants.	)	

MOTION TO DISMISS

The defendants, State of Oklahoma, in its corporate capacity and Leo Winters, individually and in his official capacity, move this Court through Michael C. Turpen, Attorney General to dismiss the above-styled cause pursuant to 12 O.S.Supp.1984, § 2012(b). Plaintiffs have failed to state a claim upon which relief can be granted and, as to at least one plaintiff, this Court lacks jurisdiction over

the subject matter of this suit. In support of this motion, the above-named defendants allege as follows:

1. Plaintiffs bring this action under 68 O.S.1981, § 226(c) under 42 U.S.C. § 1983 alleging certain State statutes are unconstitutional and asking for declaratory, monetary and injunctive relief.

2. The State of Oklahoma is not a "person" within the meaning of 42 U.S.C. § 1983 and therefore not subject to suits under this section.

3. Leo Winters, as State Treasurer and individually, is not a tax collector and plaintiffs have not alleged, nor could they prove any acts committed by him which even arguably deprive them of rights secured under the U.S. Constitution, and therefore no claim has been stated against defendant Winters under 42 U.S.C. § 1983.

4. Under Plaintiff's causes of action brought pursuant to 68 O.S.1981, § 226, the statute specifically states that the Oklahoma Tax Commission shall be the sole necessary or proper party to such suits, so no cause of action has been stated as to the defendant State of Oklahoma, in its corporate capacity, or defendant Winters, individually or in his official capacity.

5. Plaintiffs Private Truck Council of America, Inc., and Circle W. Transportation, Inc., are corporations and, therefore, have no cause of action under the Privileges and Immunities Clause. U.S. Const. Art. IV, § 2, cl.1.

6. Plaintiffs do not allege, nor could they prove that defendant Winters has acted in bad faith or in a willful or wanton manner. State Treasurer is [sic] a public officer is not individually liable to Plaintiffs in damages.

7. Plaintiffs have not alleged nor could they prove that Leo Winters has acted in bad faith or deprived Plaintiffs of clearly established constitutional rights, therefore, he has absolute immunity from damages in his individual and official capacity.

8. The Plaintiffs have adequate and duplicate State created remedies to assert their federal constitutional claims so an action under 42 U.S.C. § 1983 will not lie in state court.

9. No cause of action has been stated as to unnamed class members under 68 O.S.1981, § 226 or 42 U.S.C. § 1983 since it is not alleged they have complied with statutory administrative notice provisions which are a prerequisite to instituting a tax refund action under state statute.

10. This Court lacks subject matter jurisdiction over any alleged cause of action of the Plaintiff, Private Truck Council of America, Inc., since it is not an Oklahoma taxpayer, is [sic] is not subject to the tax which they allege to be unconstitutional or otherwise has a stake in the outcome of this suit. As a private association they do not have standing to sue on behalf of its membership since individual participation of certain members will be required. This is so because each member's tax and his right to refund will vary without standing and a justiciable controversy between Private Truck Council and the

defendants, this Court lacks subject matter jurisdiction over the action.

Respectfully submitted,

MICHAEL C. TURPEN
ATTORNEY GENERAL OF
OKLAHOMA

/s/ Thomas L. Spencer
THOMAS L. SPENCER OBA
8501
ASSISTANT ATTORNEY
GENERAL

/s/ F. Andrew Fugutt
F. ANDREW FUGUTT
OBA # 10302
112 State Capitol Building
Oklahoma City, OK 73105
(405) 521-3921

ATTORNEYS FOR DEFEN-
DANTS

CERTIFICATE OF MAILING

On this 28th day of January, 1985, a true and correct copy of the foregoing was mailed, postage prepaid, to:

Mr. Kent F. Frates
Colcord Building, Suite 600
15 North Robinson
Oklahoma City, OK 73102

Mr. Jacob P. Billig and
Mr. Richard A. Allen and
Mr. David F. Smith
Billig, Sher & Jones, P.C.
2033 K Street, N.W., Suite 300
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Mr. William B. Rogers
Ames, Daugherty, Black, Ashbranner,
Rogers and Fowler
6440 Avondale Drive
Oklahoma City, OK 73116

Mr. J. Lawrence Blankenship
General Counsel, and
Mr. Stanley Johnston and
Ms. Donna Cox
Oklahoma Tax Commission, Legal Division
M.C. Connors Building
Oklahoma City, OK 73105

/s/Thomas L. Spencer
THOMAS L. SPENCER

IN THE DISTRICT COURT OF OKLAHOMA COUNTY
STATE OF OKLAHOMA

PRIVATE TRUCK COUNCIL OF	)	
AMERICA, INC., CIRCLE W.	)	
TRANSPORTATION, INC., and	)	CJ-84-9902
ROY E. GRIFFIS,	)	
On Behalf of Themselves and all	)	
Others Similarly Situated,	)	
	)	
Plaintiffs,	)	
	)	
v.	)	
	)	
STATE OF OKLAHOMA;	)	
OKLAHOMA TAX COMMISSION;	)	
ODIE A. NANCE, Individually	)	
and as Chairman of the Oklahoma	)	
Tax Commission; ROBERT L.	)	
WADLEY, Individually and as	)	
Vice-Chairman of the Oklahoma	)	
Tax Commission; J. L. MERRILL,	)	
Individually and as Secretary-	)	
Member of the Oklahoma Tax	)	
Commission; and LEO WINTERS,	)	
Individually and as State Treasurer	)	
of Oklahoma,	)	
Defendants.	)	

DISMISSAL WITHOUT PREJUDICE

COME NOW the plaintiffs and dismiss the above-entitled action as to the defendants, The State of Oklahoma and Leo Winters, State Treasurer, specifically reserving its cause(s) of action against all remaining defendants, specifically The Oklahoma Tax Commission, Odie A. Nance, individually and as Chairman of the

Oklahoma Tax Commission; Robert L. Wadley, individually and as Vice-Chairman of the Oklahoma Tax Commission; and J. L. Merrill, individually and as Secretary-Member of the Oklahoma Tax Commission.

/s/William B. Rogers
William B. Rogers
William B. Rogers &
Associates
6440 Avondale Drive, Suite 200
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Attorneys for plaintiffs herein

CERTIFICATE OF MAILING

This is to verify that a true and correct copy of the above and foregoing Dismissal Without Prejudice was mailed this 7th day of February, 1985, to Thomas L. Spencer, Esq., Assistant Attorney General, 112 State Capitol Building, Oklahoma City, Oklahoma 73105, and to Stanley Johnston, Esq., Oklahoma Tax Commission Legal Division, M. C. Connors Building, 2501 North Lincoln Boulevard, Oklahoma City, Oklahoma 73105; and to Thomas G. Ferguson, Jr., and James E. Walker, 6412 North

Santa Fe, P. O. Box 54526, Oklahoma City, Oklahoma 73154, and Wilburn L. Williamson, Dykeman, Williamson & Williamson, Suite 107, 50 Classen Center, 5101 North Classen Boulevard, Oklahoma City, Oklahoma 73118, attorneys for Associated Motor Carriers of Oklahoma, Inc., applicant for intervention.

/s/ William B. Rogers
William B. Rogers

IN THE DISTRICT COURT OF OKLAHOMA COUNTY
STATE OF OKLAHOMA

PRIVATE TRUCK COUNCIL OF
AMERICA, INC., CIRCLE W
TRANSPORTATION, INC. and
ROY E. GRIFFIS,

On Behalf of Themselves and
All Others Similarly Situated,

Plaintiffs,

v.

OKLAHOMA TAX
COMMISSION, ODIE A.
NANCE, Individually and as
Chairman, Oklahoma Tax
Commission, ROBERT L.
WADLEY, Individually and as
Vice-Chairman, Oklahoma Tax
Commission, J. L. MERRILL,
Individually and as Secretary-
Member, Oklahoma Tax
Commission

Defendants.

No. CJ-84-9902

(Filed
Mar. 8, 1985)

PLAINTIFFS' MEMORANDUM IN OPPOSITION
TO MOTIONS TO DROP DEFENDANTS AND
PLAINTIFF AND MOTIONS TO DISMISS

This memorandum replies to the Motion To Drop Party Plaintiff For Misjoinder and Motion to Dismiss filed by defendant Oklahoma Tax Commission and Motion[s] to Drop Party Defendant For Misjoinder and Motion[s] to Dismiss filed by each of the three defendant members of

the Oklahoma Tax Commission, Messrs. Nance, Wadley and Merrill. Plaintiffs filed a Motion For Summary Judgment and a supporting Memorandum on February 14, 1985, which fully sets forth the facts and the grounds for plaintiffs' claim that the taxes and fees assessed under 68 O.S. (Supp. 1983) § 607.1 and 47 O.S. (Supp. 1983) § 22.5j(K) are unconstitutional. Plaintiffs will not reiterate the facts and those arguments here, but will only address here the specific contentions addressed by the defendants in the above-referenced motions.

I. THE TAX COMMISSION'S MOTION IS WITHOUT MERIT AND SHOULD BE DENIED

The Tax Commission's motion seeks to drop the Private Truck Council of America, Inc. (PTCA) from the case and to dismiss the action as to it on the ground that PTCA is not itself a taxpayer. The Commission's contention is without merit because this is a class action which seeks not only refunds of taxes paid but also a declaration that the challenged statutes are unconstitutional and an injunction against their future enforcement. The standing of an association like PTCA to seek such relief on behalf of its members is well settled in Oklahoma, in the federal courts and in most other states. *See, e.g., Democratic Party of Oklahoma v. Estep*, 652 P.2d 271 (Okla. 1982); *Oklahoma Association of Municipal Attorneys v. State of Oklahoma*, 577 P.2d 1310 (Okla. 1978); *Oklahoma State AFL-CIO v. State Board For Property and Casualty Rates*, 463 P.2d 693 (Okla. 1970), all sustaining suits by associations brought on behalf of their members.

In *Hunt v. Washington Apple Advertising Commission*, 432 U.S. 333, 343 (1977), the Supreme Court of the United States articulated the criteria that are generally applied in both federal and state courts to determine the standing of associations:

[W]e have, recognized that an association has standing to bring suit on behalf of its members when: (a) its members would otherwise have standing to sue in their own right; (b) the interests it seeks to protect are germane to the organization's purpose; and (c) neither the claim asserted, nor the relief requested, requires the participation of individual members in the lawsuit.

There can be no doubt that PTCA satisfies these criteria with respect to the claim for declaratory and injunctive relief in this case. PTCA is a non-profit business association that was incorporated in 1939 under the laws of New York and that now has more than 1,800 members that operate from a few to large fleets of motor vehicles in interstate commerce in furtherance of their primary, non-transportation businesses and that are thus exempt as private carriers from the jurisdiction of the Interstate Commerce Commission. Many of its members are subject to the challenged taxes because they have vehicles registered in states against which Oklahoma retaliates, and would thus have standing to sue in their own right.

The interest of its members that PTCA seeks to protect are plainly germane to its purpose. PTCA has functioned since 1939 to promote and protect the interests of

private carriers by a variety of means, including disseminating information and undertaking other educational activities on behalf of its members; presenting the views of private carriers on federal and state legislative proposals or regulatory issues; supporting efforts to promote uniform state laws affecting private carriers; and participating when necessary in judicial proceedings affecting the interests of its members. Among other judicial proceedings in which PTCA has participated on behalf of its members, it successfully prosecuted a class action challenging the constitutionality of an Indiana property tax imposed on interstate motor carriers, which resulted in more than \$18 million in refunds being paid to more than 20,000 motor carriers. *Private Truck Council of America Inc. v. Huie*, 466 N.E.2d 485 (Ind. 1984). Furthermore, the instant action is one of seven similar and coordinated class action suits that PTCA together with some of its members and other carriers have brought against the seven states that have implemented retaliatory taxes similar to Oklahoma's.¹

Finally, neither the constitutional claims asserted nor the petition's request for declaratory and injunctive relief requires the participation of individual members in the suit. See, e.g., *Warth v. Seldin*, 422 U.S. 490, 515 (1975). Because the complaint includes two individual motor carriers and because it is brought as a class action, it also seeks by way of relief refunds of all taxes that may have been paid by the time of the Court's final judgment. That

¹ The other six states are Maine, New Hampshire, New Jersey, Georgia, Nebraska and Florida.

fact, however, does not affect PTCA's standing to seek declaratory and injunctive relief.

The cases are legion in which federal and state courts have permitted associations like PTCA to maintain suits on behalf of their members. We have already noted three Oklahoma cases that have done so.² With respect specifically to constitutional challenges to state taxes, we also noted the *PTCA v. Huie* case in Indiana. In addition, in another similar case, the Supreme Court of Maine upheld a constitutional challenge to a Maine tax on trucks based outside of Maine that was brought as a class action by the American Trucking Associations, Inc. *American Trucking Associations v. Quinn*, 437 A.2d 623 (Me. 1981). Similarly, in *American Trucking Associations v. Conway*, 451 A.2d 42 (Vt. 1982), the Supreme Court of Vermont remanded for further adjudication another class action challenge to a

² The reasons for recognizing the standing of associations to bring suit on behalf of their members were well stated by the Supreme Court of Appeals of West Virginia in *Snyder v. Callaghan*, 284 S.E.2d 241, 251 (W. Va. 1981):

[N]o constructive purpose is served from a procedural standpoint by requiring the members of an organization which fulfills these requirements to maintain individual suits. . . . Permitting the association or organization to sue to protect the common interests of its members avoids multiplicity of suits by similarly situated plaintiffs involving the same or similar causes of action and provides an efficient and expeditious method of adjudicating disputes.

See also *Massachusetts Association of Independent Insurance Agents and Brokers, Inc. v. Commission of Insurance*, 373 Mass. 290, 367 N.E.2d 796, 802 (1977); *Crescent Park Tenants Association v. Realty Equities Corp of New York*, 58 N.J. 98, 275 A.2d 423, 438-439 (1971).

Vermont fee system by the same plaintiff. And in *American Trucking Associations v. O'Neill*, 522 F. Supp. 49 (D. Conn. 1981), the court granted injunctive relief to the same plaintiff against a Connecticut tax on motor carriers.

In sum PTCA clearly has standing to maintain this action for declaratory and injunctive relief on behalf of its members, and defendant Tax Commission has offered no reasons for reaching a contrary result.³

II. THE MOTIONS OF THE INDIVIDUAL DEFENDANTS SHOULD ALSO BE DENIED

Each of the individual defendants, who are the members of the Oklahoma Tax Commission, have moved to dismiss the action as to them, contending that the Tax Commission itself "is the sole, necessary and proper party defendant herein."

This contention is incorrect because plaintiffs' claims include a claim under 42 U.S.C. § 1983. As explained more fully in plaintiffs' Memorandum In Support of Plaintiffs' Motion For Summary Judgment at pp. 30-32, § 1983 gives plaintiffs a federal statutory cause of action against the individual defendants (and, under its counterpart, 42 U.S.C. § 1988, a claim for attorneys' fees in the event they prevail). Although defendants' motions assert that the petition does not allege that they have acted with "malice, oppression or willful misconduct," those allegations are legally unnecessary to plaintiffs' claims under

³ None of the cases cited in defendant's motion involved associations and none of them suggested that an association like PTCA would lack standing in a case like this.

§ 1983. That is so because these individuals have been sued in their official capacity as well as individually. Good faith is not a defense to a claim under § 1983 against a state official acting in his official capacity because, as the Supreme Court recently explained, such a claim, if sustained, in fact "imposes liability on the entity that he represents," and a good faith defense is not available to governmental entities. *Brandon v. Holt*, ___ U.S. ___, 53 U.S.L.W. 4122, 4124 (January 21, 1985). See also *Hutto v. Finney*, 437 U.S. 678, 693-694 (1978), holding the State of Arkansas liable for attorneys' fees under § 1988 in a § 1983 action against state officials in their official capacity notwithstanding the absence of bad faith.

In short, the individual members of the Tax Commission are proper defendants to plaintiffs' claim under 42 U.S.C. § 1983.

CONCLUSION

The Oklahoma Tax Commission's Motion To Drop Party Plaintiff For Misjoinder and Motion To Dismiss and the Motion(s) To Drop Party Defendant For Misjoinder and Motion(s) To Dismiss filed by each of the three defendant members of the Tax Commission should be denied.

Respectfully submitted,

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Attorneys for Plaintiffs

March 8, 1985

CERTIFICATE OF MAILING

This is to verify that true and correct copies of the above and foregoing Plaintiffs' Memorandum in Opposition to Motions to Drop Defendants and Plaintiff and Motions to Dismiss were mailed this ____ day of March, 1985, to Thomas L. Spencer, Esq., Assistant Attorney General, 112 State Capitol Building, Oklahoma City, Oklahoma 73105, and to Stanley Johnston, Esq., Oklahoma Tax Commission Legal Division, M. C. Connors Building, 2501 North Lincoln Boulevard, Oklahoma City, Oklahoma 73105; and to Thomas G. Ferguson, Jr., and James E. Walker, 6412 North Santa Fe, P. O. Box 54526, Oklahoma City, Oklahoma 73154, and Wilburn L. Williamson, Dykeman, Williamson & Williamson, Suite 107, 50 Classen

Center, 5101 North Classen Boulevard, Oklahoma City, Oklahoma 73118, attorneys for Associated Motor Carriers of Oklahoma, Inc., applicant for intervention.

Copies have also been supplied to Michael C. Turpen, Attorney General, State Capitol, Oklahoma City, Oklahoma 73105, and to Mark Grossman, Esq., Crowe & Dunlevy, 20 North Broadway, Oklahoma City, Oklahoma 73102.

William B. Rogers

IN THE DISTRICT COURT OF OKLAHOMA COUNTY
STATE OF OKLAHOMA

PRIVATE TRUCK COUNCIL	)	
OF AMERICA, INC.,	)	
et al.,	)	
	)	
	)	Plaintiffs,
	)	
vs.	)	
	)	
STATE OF OKLAHOMA, et al.,	)	No. CJ-84-9902
	)	
	)	Defendants.
	)	
ASSOCIATED MOTOR	)	
CARRIERS OF	)	
OKALHOMA [sic], INC.,	)	
	)	
	)	Intervenor.
	)	

ORDER DISMISSING CAUSE AS TO
INDIVIDUAL PARTIES DEFENDANT

This cause comes on for hearing on the 29th day of March, 1985, upon the separate motions of Odie A. Nance, Robert L. Wadley and J. L. Merrill, to drop each of said parties as a defendant herein, both in their official capacities and as individuals, and to dismiss this cause as against them.

All parties appear by counsel, and the Court, having heard and considered the arguments, representations and stipulations of counsel, finds:

1. That the petition fails to state a claim against the said defendants as individuals, or any of them, upon which relief can be granted herein; and

2. That the only claims stated by the pleadings herein or presented to the Court by plaintiffs' counsel upon oral argument, are against said defendants in their official capacities as members of the defendant, Oklahoma Tax Commission; and all of such claims, if proven, are such upon which relief may be granted only against said Oklahoma Tax Commission.

IT IS THEREFORE ORDERED that this action is hereby dismissed as against the defendants, Odie A. Nance, Robert L. Wadley and J. L. Merrill, as individuals, for failure to state a claim upon which relief can be granted; and said individuals are hereby dropped as parties defendant herein.

IT IS FURTHER ORDERED that said Odie A. Nance, Robert L. Wadley and J. L. Merrill are hereby retained as parties defendant only in their official, representative capacities as members of the defendant Oklahoma Tax Commission.

DISTRICT JUDGE

APPROVED AS TO FORM:

/s/ Richard A. Allen
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Richard A. Allen
David F. Smith
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/s/ Stanley Johnston
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Oklahoma City, OK 73194
Attorneys for Defendants

IN THE DISTRICT COURT OF OKLAHOMA COUNTY
STATE OF OKLAHOMA

PRIVATE TRUCK COUNCIL	)	
OF AMERICA, INC., et al.,	)	
	)	
Plaintiffs,	)	No. CJ-84-9902
	)	
v.	)	(Filed
STATE OF OKLAHOMA, et al.,	)	Apr. 19, 1985)
	)	
Defendants.	)	
	)	
ASSOCIATED MOTOR	)	
CARRIERS OF	)	
OKLAHOMA, INC.,	)	
	)	
Intervenor.	)	

MOTION TO DISMISS

Defendants Odie A. Nance, Robert L. Wadley and J. L. Merrill, in their official capacities as Chairman, Vice-Chairman and Secretary-Member, respectively, of the Oklahoma Tax Commission, each move the Court to dismiss Count III of the petition herein and the claim therein contained, because the petition fails to state a claim in said Count III upon which relief can be granted, for the following reasons:

1. The petition contains no allegations of any acts whatsoever by the defendants;
2. The petition contains no allegations of any acts by the defendants which have deprived plaintiffs of any clearly established right, privilege or immunity secured to plaintiffs by the United States Constitution;

3. The petition contains no allegations that defendants have, either intentionally or with reckless disregard, violated plaintiffs' clearly established constitutional rights, or that defendants have acted in bad faith;

4. Plaintiffs have failed to allege any acts by the defendants, the relief for which is cognizable under the federal Civil Rights Act (42 USC §1983);

5. Plaintiffs have alleged that the defendants are "liable" to plaintiffs, but have alleged no damages or facts giving rise to any damages.

/s/ Stanley Johnston
J. LAWRENCE BLANKENSHIP
General Counsel, Oklahoma
Tax Commission
DONNA E. COX, Attorney
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(405) 521-3141
Attorneys for Defendants

CITATION OF AUTHORITIES

Fair Assessment in Real Estate Association, Inc. v. McNary, 454 U.S. 100, 102 S. Ct. 177 (1981); *Fulton Market Cold Storage Co. v. Cullerton*, 582 F. 2d 1071 (C.A. 7th, 1978); *North American Cold Storage Co. v. County of Cook*, 468 F. Supp. 424 (D.C. Ill., 1979); *Bormann v. Tomlin*, 461 F. Supp. 193 (D.C. Ill., 1978).

LEAVE GRANTED TO FILE:

/s/ John M. Amick
District Judge

NOTICE OF MOTION

TO:

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Attorneys for Intervenor

The foregoing motion will be presented for hearing before the Honorable John Amick in his court room at the Oklahoma County Courthouse, City of Oklahoma City, on the 10th day of May, 1985 at 9:00 o'clock A.m., or as soon thereafter as counsel may be heard.

/s/ Stanley Johnston
Attorney for Defendant

CERTIFICATE OF MAILING

I hereby certify that on the 19th day of April, 1985 a copy of the foregoing motion and notice of motion was mailed to the persons named in the said notice, at the addresses therein shown.

/s/ Stanley Johnston
Attorney for Defendants

IN THE DISTRICT COURT OF OKLAHOMA COUNTY
STATE OF OKLAHOMA

PRIVATE TRUCK COUNCIL	)	
OF AMERICA, INC., et al.,	)	
	)	
Plaintiffs,	)	No. CJ-84-9902
	)	
v.	)	(Filed
STATE OF OKLAHOMA, et al.,	)	Apr. 19, 1985)
	)	
Defendants.	)	
	)	
ASSOCIATED MOTOR	)	
CARRIERS OF OKLAHOMA, INC.,	)	
	)	
Intervenor.	)	

ANSWER OF THE DEFENDANTS
ODIE A. NANCE, ROBERT L. WADLEY
AND J. L. MERRILL

Defendants Odie A. Nance, Robert L. Wadley and J. L. Merrill, in their official capacities as Chairman, Vice Chairman and Secretary-Member, respectively, of the Oklahoma Tax Commission, hereby adopt the Answer of the Oklahoma Tax Commission, as amended, and for further answer state:

1. Each defendant denies that he performed any acts in violation of plaintiffs' clearly established constitutional rights.

/s/ Stanley Johnston
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General Counsel, Oklahoma
Tax Commission
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LEAVE GRANTED TO FILE:

/s/ John M. Amick
District Judge

CERTIFICATE OF MAILING

I hereby certify that on the 19th day of April, 1985 a copy of the foregoing answer was mailed to:

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/s/ Stanley Johnston

IN THE DISTRICT COURT OF OKLAHOMA COUNTY
STATE OF OKLAHOMA

PRIVATE TRUCK COUNCIL
OF AMERICA, INC., et al.,

On Behalf of Themselves and
All Others Similarly Situated,

Plaintiffs,

v.

STATE OF OKLAHOMA, et al.,

Defendants.

No. CJ-84-9902

(Filed

Jun. 26, 1985)

POST HEARING BRIEF IN OPPOSITION TO
DEFENDANTS' MOTION TO DISMISS

On June 21, 1985, this Court held oral argument on a Motion to Dismiss filed on April 19, 1985 by defendants Odie A. Nance, Robert L. Wadley and J. L. Merrill in their official capacities. At that hearing, counsel for defendants relied upon certain case law not cited in their Motion to Dismiss for the proposition that the plaintiffs are not entitled to relief under the Federal Civil Rights Act, 42 U.S.C. §1983. They argued that neither the Commerce Clause nor the Privileges and Immunities Clause, on which this action is based, protect any "rights, privileges or immunities secured by the Constitution" within the meaning of §1983. It is to this argument that this brief is addressed.

Defendants' motion should be denied, first, because the arguments contained therein have already been

advanced and rejected by this Court. As discussed in Plaintiffs' Memorandum in Opposition to Motion to Dismiss (at pp. 1-3), this Court's order of March 29, 1985 rejected defendants' attempts to have this suit dismissed as to them in their official capacities. Yet that is precisely what defendants attempt to do again here.

Moreover, as a matter of substantive law, defendants' contention is clearly incorrect. 49 U.S.C. §1983 offers wide-ranging protection against the deprivation of "any rights, privileges or immunities secured by the Constitution . . ." (emphasis added), including those protected by the Commerce Clause and the Privileges and Immunities Clause. The Supreme Court of the United States in construing this section has said:

[T]here can be no doubt that §1 of the Civil Rights Act [of 1871] was intended to provide a remedy *to be broadly construed against all forms of official violation of federally protected rights.*

Monell v. New York City Department of Social Services, 436 U.S. 658, 700-701 (1978) (emphasis added). The Court has further stated that §1983 embraces "all of the Constitution and laws of the United States," *Lynch v. Household Finance Corporation*, 405 U.S. 538, 549 n. 16 (1972) (emphasis added). Thus, it is clear that §1983 was intended to be broadly construed to protect all federal rights.

In support of their position, the defendants cited an Eighth Circuit case which held that the Commerce Clause did not secure a right, privilege or immunity within the meaning of §1983. *Consolidated Freightways Corp. of Del. v. Kassell*, 730 F. 2d 1139 (8th Cir. 1984). However, the defendants failed to discuss two other cases, one of which was

affirmed by the United States Supreme Court, which have held that a violation of the Commerce Clause is indeed actionable under §1983. In *Confederated Salish and Kootenai Tribes v. Moe*, 392 F.Supp. 1297 (D. Mont. 1975), *aff'd*, 425 U.S. 463 (1976), an Indian tribe and some of its members brought a class action contesting the constitutionality of Montana's cigarette sales tax and dealer licensing statutes as applied to them because, among other things, it violated the Commerce Clause. The court concluded the §1983 claim was proper, stating:

Although §1983 was enacted primarily to enforce the Fourteenth Amendment, *Lynch v. Household Finance Corp.*, 405 U.S. 538, 545, 92 S.Ct. 1113, 31 L.Ed.2d 424 (1972), the Court held in *Lynch* that the phrase "rights, privileges, or immunities secured by the Constitution and laws" includes not only Fourteenth Amendment rights, but "[all of] the Constitution [and] laws of the United States", noting its interpretation of similar language with respect to 18 U.S.C. §242 in *United States v. Price*, 383 U.S. 787, 797, 86 S.Ct. 1152, 16 L.Ed.2d 267 (1966). 404 U.S. at 549, n. 16. We therefore have no difficulty in holding that plaintiffs' alleged violation of Commerce Clause rights is sufficient to state a claim under §1983.

392 F.Supp. at 1304-1305. Later, in *Kennecott Corp. v. Smith*, 637 F.2d 181 (3rd Cir. 1980), the Third Circuit held that §1983 encompasses Commerce Clause claims. The court stated:

The present action is properly brought under §1983 because it seeks redress for deprivations of constitutional rights secured by the Commerce Clause and of federal statutory rights protected

by the Williams Act. *See, Maine v. Thiboutot*, __ U.S. __, 100 S.Ct. 2502, 65 L.Ed.2d 555 (1980).

637 F.2d at 186 (emphasis added).

The court in *Consolidated Freightways* based its holding on the conclusion that the Commerce Clause does not protect or establish individual rights against government interference. That conclusion, however, is manifestly incorrect. While the underlying purpose of the Commerce Clause is to "create an area of free trade among the several states" *McCleod v. J. E. Dilworth Co.*, 322 U.S. 327, 330 (1944), this purpose is achieved by protecting individuals engaged in commerce from discriminatory and excessive taxation and regulatory burdens imposed by state governments.

Thus, the United States Supreme Court has often construed the Commerce Clause as protecting individual rights. In *Boston Stock Exchange v. State Tax Commission*, 429 U.S. 318 (1977), the Court granted standing to several stock exchanges to sue on behalf of their members challenging a New York tax which discriminated against out-of-state stock exchanges and their members. In discussing the exchanges' standing to sue on behalf of their members, the Court clearly indicated that the Commerce Clause protects individual rights:

The exchanges are asserting their right under the Commerce Clause to engage in interstate commerce free of discriminatory taxes on their business and they allege that the transfer tax indirectly infringes on that right.

420 U.S. at 320 n. 3 (emphasis added). In further discussing the harm suffered by the individual members, the Court continued:

The members therefore suffered an actual injury within the *zone of interests protected by the Commerce Clause* and the exchanges satisfy the requirements for representational standing.

Id. (emphasis added). Thus, the Commerce Clause protects a specific zone of interests for individuals. Likewise, in *Maryland v. Louisiana*, the Court's ultimate holding was that

[T]he first use tax is unconstitutional under the Commerce Clause because it unfairly discriminates against purchasers of gas moving through Louisiana in interstate commerce.

451 U.S. at 760. It is significant that the disputed Louisiana tax was unconstitutional because it discriminated against purchasers of gas, not because it disrupted the federal-state balance with respect to the regulation of commerce.

With respect to the Privileges and Immunities Clause, it would be anomalous indeed if §1983 did not protect against violations of that clause, since §1983 specifically refers to "rights, *privileges or immunities* secured by the Constitution." (Emphasis added.) Moreover, as the plaintiffs noted in their memorandum in support of their motion for summary judgment, the protections of the Commerce Clause and the Privileges and Immunities Clause are similar and frequently overlapping. *Hicklin v. Orbeck*, 437 U.S. 518, 531-532 (1978). Thus, for the same reasons described above with respect to the Commerce

Clause, violations of the Privileges and Immunities Clause should be actionable under §1983.

The case cited by the defendants at oral argument, *Spencer v. South Carolina Tax Commission*, 316 S.E.2d 386 (S.C. 1984), aff'd by an equally divided court, 53 U.S.L.W. 4431 (1985), is inapposite. In that case, the trial court "did not address the §1983 claim" and the South Carolina Supreme Court did not squarely address the applicability of §1983 to a Privileges and Immunities Clause claim. There is no discussion whatever of the Privileges and Immunities Clause or why it should not be covered by §1983. Moreover, since the decision below was affirmed by an equally divided Supreme Court, the affirmance has no applicability beyond that specific case. *Laird v. Tatum*, 409 U.S. 824 (1972) (per Rehnquist, J., on motion to recuse).

In further support of their claim that the plaintiffs do not have an appropriate claim under §1983, and their related contention that plaintiffs are not entitled to costs and attorneys' fees under 42 U.S.C. §1988, the defendants cited *Brown v. Hornbeck*, 458 A.2d 900 (Md. 1983) and *Backus v. Chivilis*, 224 S.E.2d 370 (Ga. 1976). These cases are both inapposite.

In *Brown v. Hornbeck*, the court denied §1988 attorneys' fees after a case had settled because it found that the plaintiffs had no colorable Equal Protection claim which would be actionable under §1983. In this case, as has been shown, the plaintiffs have a valid §1983 claim.

In *Backus v. Chivilis*, the court denied §1983 damages for a claim of unequal taxation because the state had statutorily established procedures for equalizing such

assessments. Because of the adequate state law remedy, the court held that the federal cause of action under §1983 was precluded. However, the *Backus* holding has no applicability in this case. Here, although the defendants concede that the State's tax refund statute, 68 O.S. (1981) §226, applies to afford refunds to the plaintiffs, they deny that costs and attorneys' fees are available to the plaintiffs under the common fund doctrine should they succeed in obtaining refunds for the members of the class. As shown in plaintiffs' memorandum in support of their motion for summary judgment, this is incorrect. However, assuming *arguendo* that the defendants are correct, *Backus* would not apply in this case because, according to defendants' theory of the law, the plaintiffs would not be able to obtain costs and attorneys' fees under state law, and therefore would not have a complete and adequate remedy under state law. Attorneys' fees obviously are a substantial part of the plaintiffs' remedy.

For all the foregoing reasons, in addition to the reasons set forth in plaintiffs' initial Memorandum In Opposition To Motion To Dismiss, defendants' Motion To Dismiss should be denied.

Respectfully submitted,

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CERTIFICATE OF SERVICE

This is to verify that a true and correct copy of the above and foregoing Post Hearing Brief in Opposition to Defendants' Motion to Dismiss was personally delivered this 26th day of June 1985, to Stanley Johnston, Esq., Oklahoma Tax Commission Legal Division, M. C. Connors Building, 2501 North Lincoln Boulevard, Oklahoma City, Oklahoma 73105; and copies were mailed to Thomas L. Spencer, Esq., Assistant Attorney General, 112 State Capitol Building, Oklahoma City, Oklahoma 73105; to Thomas G. Ferguson, Jr., and James E. Walker, 6412 North Santa Fe, P. O. Box 54526, Oklahoma City, Oklahoma 73154; to Wilburn L. Williamson, Dykeman, Williamson & Williamson, Suite 107, 50 Classen Center, 5101 North Classen Boulevard, Oklahoma City, Oklahoma, 73118.

Copies have also been supplied to Michael C. Turpen, Attorney General, State Capitol, Oklahoma City, Oklahoma 73105, and to Mark Grossman, Esq., Crowe & Dunlevy, 20 North Broadway, Oklahoma City, Oklahoma 73102.

/s/ William B. Rogers
William B. Rogers

IN THE DISTRICT COURT OF OKLAHOMA COUNTY
STATE OF OKLAHOMA

PRIVATE TRUCK COUNCIL)
OF AMERICA, INC., et al.,)

Plaintiffs,)

vs.)

No. CJ-84-9902

STATE OF OKLAHOMA, et al.)

Defendants.)

ASSOCIATED MOTOR)

CARRIERS)

OF OKLAHOMA, INC.,)

Intervenor.)

SUPPLEMENTAL BRIEF IN SUPPORT
OF DEFENDANTS' MOTION TO
DISMISS COUNT III

(Filed June 27, 1985)

This action, brought pursuant to 68 O.S. 1981, §226, involves a challenge on constitutional grounds to Oklahoma's reciprocal tax levied by 68 O.S. Supp. 1982, §607.1 and 47 O.S. Supp. 1982, §22.5(j)(K). In Count I of the Petition, Plaintiffs allege that the taxes imposed by said statutes constitute an unconstitutional burden on interstate commerce. In Count II it is alleged that the taxes constitute a violation of the Privileges and Immunities Clause of the United States Constitution. In Count III Plaintiffs allege that by the imposition of these taxes as provided by statute, the Defendants "are therefore liable to Plaintiffs pursuant to 42 U.S.C. §1983." The relief sought in this action is a declaration by this Court that said taxes are unconstitutional, and a refund of the taxes paid under said statute, both of which forms of relief are

available under §226. By inclusion of Count III, Plaintiffs also seek an award of attorneys fees, which are not provided for by §226.

Defendants Nance, Wadley, and Merrill, Commissioners of the Oklahoma Tax Commission, have moved the Court to dismiss Count III on the grounds that said Count III fails to state a claim upon which relief can be granted, for the reason that the relief sought in Count III, i.e., attorneys' fees, is not an independent right of action cognizable under the Federal Civil Rights Act, 42 U.S.C. §1983.

Upon oral argument of this motion, Plaintiffs' counsel conceded that the Commerce Clause does not secure rights cognizable under §1983; but requested leave to rebut by supplemental brief the authorities cited by Defendant on the proposition that §1983 could not be used to circumvent the provisions of state law for the sole purpose of asserting a claim for attorneys fees.

ARGUMENT AND AUTHORITIES

Initially, Plaintiffs assert that the issue here in question, i.e., the applicability of 42 U.S.C. §1983 for the purposes of claiming attorneys' fees under the attendant Section 1988, has been previously ruled upon by this Court. It has not. On March 29, 1985, this Court dismissed this action as against the individual Defendants Nance, Wadley, and Merrill, for the reason that no cause of action had been stated or claimed against them as individuals. The issue of whether §1983 may be used to support a claim for attorneys' fees in derogation of state law was

neither presented to nor ruled upon by this Court. Plaintiffs' assertion to the contrary is at best an attempt to confuse this issue; and at worst an attempt to mislead this Court.

As to the question whether the Commerce Clause secures rights cognizable under 42 U.S.C. §1983, the Plaintiffs, having conceded Defendant's position in oral argument, now reassert this claim, relying heavily upon *Confederated Salish and Kootenai Tribes v. Moe*, 392 F. Supp. 1297 (D. Mont. 1975), and *Kennecott Corp. v. Smith*, 637 F.2d 181 (3rd Cir. 1980). However, none of the cases cited by Plaintiffs substantially discuss whether the Commerce Clause is a Constitutional provision which secures rights within the meaning of Section 1983; nor did those cases so hold. Further, *Kootenai*, which dealt with state taxation of cigarette sales by Indian tribes on tribal reservation land, was affirmed by the United States Supreme Court on the basis of the supremacy clause rather than the Commerce Clause. 425 U.S. 463, 96 S.Ct. 1634. The Supreme Court in discussing the jurisdictional issues presented by that case, noted that the District Court had found jurisdiction over the individual Indian plaintiffs on the basis of 28 U.S.C. §1343(3), together with their allegation that the taxes deprived them of a right secured by the Commerce Clause, but went on to state "We need not decide this question, however, since all of the substantive issues raised on appeal can be reached by deciding the claims of the tribe alone, which did bring this action in the District court under Section 1362. *Id.*, at 425 U.S. 475, n. 14. The only case cited to this Court after substantial research by both sides, and which deals directly and squarely with the issue before this Court, is *Consolidated*

Freightways Corporation of Delaware v. Kassel, 730 F.2d 1139 (8th Cir. 1984). The same cases relied upon by plaintiffs in this case were effectively disposed of by the opinion and ruling in *Consolidated Freightways*. On October 1, 1984, certiorari was denied by the United States Supreme Court, ___ U.S. ___, 105 S.Ct. 126; and that ruling has been followed in the 7th Circuit in *Gould, Inc. v. Wisconsin Department of Industry, Labor and Human Relations*, 750 F.2d 608 (1984). The only federal courts dealing squarely with this issue having ruled that the Commerce Clause does not secure rights cognizable under Section 1983, this Court should do likewise.

As to Defendants' second proposition, the issue before this Court is not whether the Privileges and Immunities Clause, in the abstract, secures rights cognizable under 42 U.S.C. 1983. The question before this Court is whether Section 1983 may be invoked by plaintiffs for the sole purpose of claiming attorneys' fees and circumventing the remedies provided by state law. In oral argument and briefing on this point, it has been repeatedly asserted by Defendants, and never denied by Plaintiffs, that the sole reason for the inclusion of Count III in the petition was and is for the purpose of seeking attorneys' fees. With the exception of attorneys' fees, all the relief to which plaintiffs may be entitled in this case, and the procedure to obtain such relief, is provided for and governed by 68 O.S. 1981, §226, under which this action was brought. By the inclusion of Count III, Plaintiffs are merely trying to establish an independent right of action to recover attorneys' fees. In *Brown v. Hornbeck*, 458 A.2d 900 (1983), the Maryland court denied just such a claim. Further, in *Backus v. Chilivis*, 236 Ga. 500, 224 S.E. 2d 370

(1976), the Georgia Supreme Court ruled that where taxpayers had a plain, speedy and efficient remedy under state law to challenge ad valorem tax assessments, the plaintiffs could not avail themselves of a claim under Section 1983 to circumvent the remedies provided by state law. Similarly, in *Spencer v. South Carolina Tax Commission*, 316 S.E. 2d 386 (S.C. 1984), affirmed March 27, 1985, ___ U.S. ___, 53 L.W. 4431, the South Carolina Supreme Court, following the reasoning and ruling in *Chapman v. Houston Welfare Rights Organizations*, 441 U.S. 600, 99 S.Ct. 1905 (1979), and the rulings in *Backus*, supra, and *Brown*, supra, held that Section 1983, being remedial, does not provide for any substantive rights; that state remedies for asserting rights may not be circumvented by invoking Section 1983; and that where it could reasonably be inferred that the sole reason that taxpayers alleged Section 1983 in their suit challenging state tax statutes was to justify the allowance of counsel fees which were not provided for in the state law, the taxpayers would not be entitled to an award of attorneys fees under Section 1988.

Understandably, Plaintiffs do not agree with the cited cases, and would like this Court to ignore the rule of law announced therein. However, Plaintiffs cite no authority on this point, either in derogation of these rulings or in support of their position. Having been given the opportunity to cite to this Court authority in support of their position or in rebuttal to the cases cited by Defendants, Plaintiffs have failed to do so.

It should be noted that Oklahoma's statutory procedures for contesting the constitutional validity of this State's tax statutes, and for obtaining refunds of taxes

found to be unconstitutional, including 68 O.S. 1981, §226, have met the test in the federal courts, and have been found to provide a plain, speedy, and adequate remedy at law. *Bunte Candies, Inc. v. Cartwright*, 508 F. Supp. 229 (D.C.W.D. Okl.1981), *Cities Service Gas Company v. Oklahoma Tax Commission*, 656 F.2d 584 (10th Cir. 1981).

CONCLUSION

It is clear the Plaintiffs have totally failed in Count III to state a claim for which relief can be granted; that Count III asserts no substantial rights cognizable under 42 U.S.C. §1983; and that Count III was included for the sole purpose of attempting to claim attorneys' fees in circumvention of the state statutes under which this action was brought. Therefore, Count III of the Petition should be dismissed.

Respectfully submitted,

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Attorneys for Defendants

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing Brief in Support of Defendants' Motion to Dismiss Count III was on this 27th day of June, 1985, delivered to William B. Rogers, Citizens Plaza, Suite 1060, 1601 Northwest Expressway, Oklahoma City, Oklahoma, 73118, Attorney for Plaintiffs; and mailed with sufficient postage prepaid to Jacob P. Billig, Richard A. Allen, David F. Smith, Billig, Sher & Jones, P. C., 2033 K Street, Northwest, Suite 300, Washington, D.C., 20006, Attorneys for Plaintiffs; Thomas L. Spencer, Assistant Attorney General, 112 State Capitol Building, Oklahoma City, Oklahoma, 73105; Thomas G. Ferguson, Jr., James E. Walker, 6412 N. Santa Fe, P. O. Box 54526, Oklahoma City, Oklahoma, 73154, Attorneys for Intervenor; Wilburn L. Williamson, 50 Classen Center, Suite 107, 5101 N. Classen Boulevard, Oklahoma City, Oklahoma, 73118, Attorneys for Intervenor.

/s/ Stanley Johnston

IN THE DISTRICT COURT OF OKLAHOMA COUNTY
STATE OF OKLAHOMA

PRIVATE TRUCK COUNCIL OF	)	
AMERICA, INC., et al.,	)	
	)	
Plaintiffs	)	
	)	
v.	)	No. CJ-84-9902
STATE OF OKLAHOMA, et al.	)	
	)	
Defendants.	)	(Filed
	)	Mar. 4, 1987)
ASSOCIATED MOTOR CARRIERS	)	
OF OKLAHOMA, INC.,	)	
	)	
Intervenor.	)	

ORDER GRANTING JUDGMENT TO DEFENDANTS

This cause comes for disposition on the motion of the plaintiffs for summary judgment. The Court having considered the briefs, affidavits and documents submitted by the parties finds, for the reasons stated more fully in the Court's Memorandum decision issued on February 6, 1987:

1. That there are no disputed material issues of fact and that defendants are entitled to judgment as a matter of law;

2. That the taxes imposed pursuant to 68 O.S.A. § 607.1 and 47 O.S.A. § 22.5j(K) (now 47 O.S.A. § 1120(K)) do not violate the Commerce Clause or the Privileges and Immunities Clause of the United States Constitution; and

3. That Count III of the complaint asserting rights under 42 U.S.C. § 1983, fails to state a claim upon which relief can be granted and should be dismissed.

IT IS THEREFORE ORDERED that plaintiffs' motion for summary judgment seeking declaratory and injunctive

relief, refunds, costs and attorneys fees is denied, and it is

FURTHER ORDERED that final judgment in this cause shall be entered for the defendants pursuant to Rule 13.e of the Rules for District Courts of Oklahoma.

/s/ John M. Amick
DISTRICT JUDGE

March 3, 1987
Date

APPROVED AS TO FORM:

/s/ Stanley Johnston
J. Lawrence Blankenship
General Counsel
Donna E. Cox
Stanley Johnston
2501 Lincoln Boulevard
Oklahoma City,
Oklahoma 73118

Attorneys for Defendants

/s/ Richard A. Allen
Richard A. Allen
Zuckert, Scoutt,
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888 17th Street, N.W.

Washington, D.C. 20006

/s/ Thomas G. Ferguson, Jr.
Thomas G. Ferguson, Jr.
James E. Walker
6412 North Santa Fe
Oklahoma City,
Oklahoma 73154

and

Wilburn L. Williamson
Dykeman, Williamson &
Williamson
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Center
5101 Classen Boulevard
Oklahoma City, Ok.
73118

Attorneys for Intervenor

/s/ William B. Rogers
William B. Rogers
William B. Rogers &
Associates
1601 Northwest
Expressway
Suite 1060
Oklahoma City, OK
73118

Attorneys for Plaintiff

IN THE DISTRICT COURT OF OKLAHOMA COUNTY
STATE OF OKLAHOMA

PRIVATE TRUCK COUNCIL OF	)	
AMERICA INC., et al.,	)	
Plaintiffs,	)	
	)	
v.	)	No. CJ-84-9902
STATE OF OKLAHOMA, et al.	)	
	)	(Filed
Defendants,	)	Mar. 6, 1987)
ASSOCIATED MOTOR CARRIERS	)	
OF OKLAHOMA, INC.,	)	
	)	
Intervenor.	)	

ORDER

This cause came for hearing this 6th day of March, 1987 upon plaintiff's motion to settle the journal entry reflecting this court's previous ruling granting plaintiff's motion to certify the class under 12 O.S. Supp. 1987 §2023.

The court finds that the plaintiff's motion to certify the class was granted, and it furthermore finds that this action satisfies the prerequisites set forth in subsections (B)(1) and (B)(2) of 12 O.S. (1984 Supp.) §2023 of the Oklahoma Statutes and may therefore be maintained as a class action by the named plaintiffs for themselves and on behalf of and as representatives for all motor carriers whose vehicles are registered in states against which Oklahoma retaliates pursuant to 68 O.S. (Supp. 1987) §607.1 and 47 O.S. Supp. 1987 §1120(K) formerly §22.5j(K) and which are therefore subject to the tax imposed under those sections.

IT IS THEREFORE ORDERED that this action is certified as a class action under 12 O.S. Supp. 1987 §2023 (B)(1)(b) and (B)(2).

DATED this 6th day of March, 1987.

/s/ John M. Amick
District Judge

SUPREME COURT OF THE UNITED STATES
OFFICE OF THE CLERK
WASHINGTON, D. C. 20543

June 28, 1991

Mr. Richard A. Allen
Zuckert Scoutt & Rasenberger
888 17th St., N. W., Suite 600
Washington, DC 20006

Re: National Private Truck Council, Inc., et al. v.
Oklahoma Tax Commission, et al. No. 90-1597

Dear Mr. Allen:

The Court today entered the following order in the
above entitled case:

The petitioner for a writ of certiorari is granted. The
judgment is vacated and the case is remanded to the
Supreme Court of Oklahoma for further consideration in
light of *Dennis v. Higgins*, 498 U. S. ____ (1991).

Very truly yours,

/s/ William K. Suter
William K. Suter, Clerk

Supreme Court of the United States

No. 90-1597

National Private Truck Council, Inc., et al.,

Petitioners,

v.

Oklahoma Tax Commission, et al.

ON WRIT OF CERTIORARI to the Supreme Court of Oklahoma.

THIS CAUSE having been submitted on the petition for writ of certiorari and response thereto,

ON CONSIDERATION WHEREOF, it is ordered and adjudged by this Court that the judgment of the above court in this cause is vacated with costs, and that this cause is remanded to the Supreme Court of Oklahoma for further consideration in light of *Dennis v. Higgins*, 498 U.S. ____ (1991).

IT IS FURTHER ORDERED that the petitioners, National Private Truck Council, Inc., et al., recover from Oklahoma Tax Commission, et al., Three Hundred Dollars (\$300.00) for their costs herein expended.

June 28, 1991

Clerk's costs: \$300.00

**United States of America, ss:
THE PRESIDENT OF THE
UNITED STATES OF AMERICA**

To the Honorable the Justices
of the Supreme Court of
Oklahoma,

GREETINGS:

WHEREAS, lately in the Supreme Court of Oklahoma, there came before you a cause between Private Truck Council of America, Inc., Circle W. Transportation, Inc., and Roy E. Griffis, On behalf of Themselves and all Others Similarly Situated, Appellants, and Oklahoma Tax Commission, et al., Appellees, and Associated Motor Carriers of Oklahoma, Inc., Intervenor, No. 68,401, wherein the judgment of the said Supreme Court was duly entered on the twenty-eighth day of June, 1990, as appears by an inspection of the petition for a writ of certiorari.

AND WHEREAS, in the 1990 Term, the said cause having been submitted to the **SUPREME COURT OF THE UNITED STATES** on the said petition for writ of certiorari, and the Court having granted the said petition.

ON CONSIDERATION WHEREOF, it was ordered and adjudged on June 28, 1991, by this Court that the judgment of the above court in this cause was vacated with costs, and that this cause is remanded to the Supreme Court of Oklahoma for further consideration in light of *Dennis v. Higgins*, 498 U.S. ____ (1991).

IT IS FURTHER ORDERED that the petitioners, National Private Truck Council, Inc., et al., recover from

Oklahoma Tax Commission, et al., Three Hundred Dollars (\$300.00) for their costs herein expended.

NOW, THEREFORE, THE CAUSE IS REMANDED to you in order that such proceedings may be had in the said cause, in conformity with the judgment of this Court above stated, as accord with right and justice, and the Constitution and Laws of the United States.

Witness the Honorable **WILLIAM H. REHNQUIST**, Chief Justice of the United States, the – 30th – day of – July – in the year of our Lord one thousand nine hundred and ninety-one.

**Costs of National Private Truck
Council, Inc., et al.**

Clerk's costs: \$300.00

/s/ _____
Clerk of the Supreme Court
of the United States

No. 90-1597

National Private Truck Council, Inc.,
et al.

v.

Oklahoma Tax Commission, et al.

IN THE SUPREME COURT OF THE
STATE OF OKLAHOMA

NATIONAL PRIVATE TRUCK
COUNCIL, INC,
WESTINGHOUSE ELECTRIC
CORPORATION, and ROY E.
GRIFFIS, on behalf of
themselves and all others
similarly situated,

Appellants,

v.

OKLAHOMA TAX
COMMISSION, et al.

Appellees,

and

ASSOCIATED MOTOR
CARRIERS OF OKLAHOMA,
INC.,

Intervenor.

No. 68,401

(Filed
Jul. 20, 1992)

On Remand From the
United States Supreme Court

MOTION TO REMAND

On July 31, 1991 the United States Supreme Court vacated the decision of this Court as amended, reported at 806 P.2d 598 (Okla. 1991), and ordered that "this cause

is remanded to the Supreme Court of Oklahoma for further consideration in light of *Dennis v. Higgins*, 498 U.S. ____ (1991).” In *Dennis v. Higgins*, 498 U.S. ____, 112 L.Ed.2d 969, 111 S.Ct. 865 (1991), the United States Supreme Court held, contrary to this Court’s decision in this case, that a State’s violation of the Commerce Clause of the United States Constitution is actionable under 42 U.S.C. § 1983, with the result that prevailing plaintiffs are entitled to recover reasonable attorneys’ fees from the defendants under 42 U.S.C. § 1988.

Following the United States Supreme Court’s action, appellants¹ made several attempts to settle the remaining issues in dispute with appellees, the Oklahoma Tax Commission *et al.* (hereinafter, collectively, “Tax Commission”). Those efforts ultimately proved unsuccessful. Accordingly, appellants now move this Court to remand the case to the trial court for a resolution of those matters that remain, or may remain, in dispute: namely, the establishment of a plan of distribution of the taxes and accrued interest that this Court held must be refunded to the plaintiff class and a determination of the amount of attorneys’ fees and litigation expenses appellants’ attorneys should be paid under 42 U.S.C. § 1988 and the equitable “common fund” doctrine.

¹ Pursuant to a merger with another trade association of private motor carriers in August 1988 the original lead plaintiff, Private Truck Council of America, Inc., is now known as National Private Truck Council of America, Inc. Westinghouse Electric Corp. is the successor in interest to another named plaintiff, Circle W Transportation, Inc.

STATEMENT OF FACTS

This case has a long history. As set forth more fully in this Court's opinion, appellants filed this suit in December 1984 as a class action challenging the constitutionality of certain Oklahoma statutes that imposed retaliatory taxes and fees on out-of-state motor carriers operating in Oklahoma. Appellants filed a motion for summary judgment in February 1985.² On February 6, 1987 District Judge John Amick issued a brief opinion upholding the challenged taxes on the merits and denying appellants' motion. Appellants appealed to this Court.

On June 28, 1990 this Court issued an opinion reversing Judge Amick. The Court held: "The questioned statutes are plainly discriminatory" and thus violated the Commerce Clause under the test set forth in *Complete Auto Transit, Inc. v. Brady*, 430 U.S. 271, 279 (1977). 806 P.2d at 604. The Court stated: "Obviously . . . Oklahoma's retaliatory taxes do not pass the third and fourth prongs [of the *Complete Auto* test]." *Id.*

With respect to appellants' remedy, the Court held that appellants and the class they represent are entitled

² Earlier, shortly after filing the complaint, appellants had moved for a preliminary injunction against collection of the taxes or, alternatively, for an order requiring that the taxes collected during the pendency of the suit be held in an escrow fund. After a hearing, District Judge William S. Myers, Jr. expressed the view that the plaintiffs would probably prevail in the case, but he denied the motion for preliminary injunction or escrow on the ground that the merits would probably be decided within 30 to 60 days. Judge Myers' prediction proved overly optimistic.

under 68 O.S. 1981 § 226 to a refund of the unconstitutionally collected taxes and fees plus interest at the statutorily prescribed rate. 806 P.2d at 606-608. However, although the Court had found the taxes "plainly discriminatory" and "obviously" unconstitutional under *Complete Auto* and many other Supreme Court decisions, it limited the refunds to which the plaintiff class were entitled to those that were "collected after June 23, 1987" (*id.* at 608-610), the date the United States Supreme Court had decided another truck tax case involving very different kinds of taxes, *American Trucking Associations, Inc. v. Scheiner*, 483 U.S. 266 (1987).

The Court also denied appellants' separate claim for attorneys' fees under 42 U.S.C. § 1988, stating:

Truckers also contend that they are entitled to attorneys fees as provided under 12 O.S. 1981 § 18(c) and 42 U.S.C. § 1988, including the costs of this action. Subsequent to Truckers' present action, the Oklahoma Legislature repealed § 18(c), with the adoption of this State's Pleading Code, 12 O.S. § 1101, *et seq.* Truckers cannot recover attorneys fees under a statute not applicable at the time they instituted this action, because they had no rights accrued thereunder.⁵⁰ Nor may Truckers recover attorneys fees under § 1988 for the adjudicated Commerce Clause violation.⁵¹

⁵⁰ Okla. Const., Art. 5, § 54. See also *Gayman v. Mullen*, 58 Okla. 477, 161 P. 1051 (1916).

⁵¹ *Consolidated Freightways Corp. of Delaware v. Kassel*, 730 F.2d 1139 (8th Cir. 1984); *Private Truck Council of America, Inc. [v. Sec'y of State]*, 503 A.2d

214; *Private Truck Council of America, Inc. v. State of New Hampshire*, 517 A.2d 1150 (N.H. 1986); *State v. Private Truck Council of America, Inc.*, 371 S.E.2d 378 (Ga. 1988)

806 P.2d at 610.³

The Tax Commission then petitioned this Court for rehearing on the merits and also on the scope of the remedy. The Tax Commission pointed out that *American Trucking Associations, Inc. v. Smith*, 110 S.Ct. 2323 (1990), held that the *Scheiner* decision is to operate prospectively for *tax periods* occurring after the date of the decision without regard to when the tax was paid or collected.

³ In fact, appellants had never argued that they were entitled to attorneys' fees under 12 O.S. 1981 §18(c). Section 18(c), prior to its repeal, was a fee-shifting provision like 42 U.S.C. § 1988 which authorized recovery of plaintiff class attorneys' fees from the class action defendant. Although that provision was cited in the complaint as one basis for relief, it was not thereafter cited or argued in any brief to the district court or this Court. Instead, appellants argued that they were entitled to payment of attorneys' fees from the defendants under 42 U.S.C. § 1988 and also to payment from the common fund recovered for the class under the equitable "common fund" doctrine, which is well recognized in Oklahoma. *State ex rel Burk v. City of Oklahoma City*, 522 P.2d 612 (Okla. 1974); *Wewoka v. Banker*, 117 F.2d 839 (10th Cir. 1941) (applying Oklahoma law). See Brief in Chief of Appellants to the Oklahoma Supreme Court dated October 5, 1987 at pp. 28-29. Moreover, although the Tax Commission and the Attorney General disputed appellants' entitlement to fees under 42 U.S.C. § 1988, neither of them disputed that appellants would be entitled to payment of reasonable fees from a common fund if they recovered a fund for the class. This Court's opinion did not address the entitlement of plaintiffs' attorneys to fees from a common fund, but nothing in the opinion suggests that the common fund doctrine would not be applicable. Nor is there any reason it would not apply in this case, as it does in others.

Appellants opposed the petition for rehearing but agreed with the Tax Commission's point regarding the *Smith* case. On September 27, 1990 this Court issued a "Corrected Order" which amended the June 28, 1990 opinion to require refunds of all taxes collected "for the tax year 1987" and thereafter. Appellants and the Tax Commission then jointly petitioned for a further rehearing, pointing out that the term "the tax year 1987" was ambiguous and inappropriate in connection with the taxes at issue, some of which were assessed on the basis of three month periods, and others of which were assessed on the basis of twelve month periods commencing April 1 or July 1 of each year.⁴ On March 5, 1991 the Court issued a further Order of Clarification which directed the Tax Commission to refund taxes paid "for tax periods or portions of tax periods occurring after June 23, 1987."

Appellants then filed a petition for a writ of certiorari with the United States Supreme Court, which sought review of two aspects of this Court's decision. First, it sought review of that part of the Court's decision limiting refunds to taxes for periods after June 23, 1987. Second, it sought review of this Court's ruling that Commerce Clause violations were not cognizable under 42 U.S.C. § 1983 and therefore that appellants were not entitled to attorneys' fees under § 1988. The latter ruling and the

⁴ In joining the Tax Commission in petitioning for rehearing to correct the ambiguity in the order, appellants made it clear that they believed that no limitation on the retroactive effect of the decision was appropriate and were in no way retreating from that position.

cases on which it relied, appellants argued, were squarely overruled by *Dennis v. Higgins*.

As noted at the outset, on July 31, 1991 the Supreme Court vacated this Court's decision and remanded the case to this Court for further consideration in light of *Dennis v. Higgins*. The Court's order made no reference to the other ground on which review had been sought.

ARGUMENT

Appellants submit that there is no need at this time for this Court's consideration of any issues, or the briefing of any issues to this Court. Instead, the Court should simply remand the case to the trial court for its consideration and resolution of the various issues remaining in dispute, inasmuch as the resolution of those issues will turn in large part on additional factual submissions. Any party dissatisfied with the district court's resolution of any of those issues may thereafter appeal to this Court.

The earlier decisions of this Court and the United States Supreme Court establish, appellants submit, the following propositions beyond dispute:

1. Appellants and the plaintiff class are entitled to refunds plus interest for all taxes paid by them for tax periods after June 23, 1987.
2. Appellants are also entitled to recover reasonable attorneys' fees and litigation expenses from the Tax Commission under 42 U.S.C. § 1988.

The latter proposition is clearly required by *Dennis* and other cases. It is now firmly established that plaintiffs

who are entitled to relief under 42 U.S.C. § 1983 are also entitled to recover their reasonable attorneys' fees and litigation expenses from the state defendant whether or not the plaintiffs might also have been entitled to, or obtained substantive redress on, other grounds. *See, e.g., Maher v. Gagne*, 448 U.S. 122, 132 n. 15 (1980); *Maine v. Thiboutot*, 448 U.S. 1,10-11 (1980). It is also settled that a state may not avoid this obligation on any ground based on state law or immunity or asserted good faith. *Howlett v. Rose*, 110 S.Ct. 2430 (1990); *Hutto v. Finney*, 437 U.S. 678, 693-700 (1978).

The issues that have not been resolved by the decisions of this Court and the United States Supreme Court and which remain to be resolved are as follows:

1. The precise procedures for refunding taxes and accrued interest to taxpayers, including the means of notifying taxpayers, requiring proofs of claims, the disposition of unrefundable amounts, etc.
2. The amount of reasonable attorneys' fees and litigation expenses that plaintiffs are entitled to be awarded from the Tax Commission under 42 U.S.C. § 1988 and from the common fund under the common fund doctrine.⁵

⁵ A third unresolved issue concerns the entitlement of the plaintiff class to refunds of taxes for periods prior to June 23, 1987. This Court rejected appellants' claim for such refunds, but the Court's decision was vacated by the United States Supreme Court. Although that Court's order did not refer to the refund issue, the vacating of this Court's entire decision appears to leave that issue open. In the interest of terminating this litigation in some reasonable time frame, however, appellants have decided not to pursue that issue further.

With respect to the two issues that remain to be resolved, if the Court grants this Motion to Remand, appellants intend to promptly file with the district court a motion to approve a plan of distribution and a petition for an award of attorneys' fees and litigation expenses. The petition for fees and expenses will include affidavits and time and expense records of the attorneys, together with a memorandum of points and authorities concerning the pertinent legal principles. Appellants will also ask the trial court to order notice to be issued to members of the plaintiff class of the substance of the distribution plan and the fee petition, and to schedule a hearing on those matters at which any interested class member can appear and be heard.

CONCLUSION

The Court should remand this case to the District Court for Oklahoma County to determine an appropriate procedure for refunding taxes and interest to the plaintiff class and to determine and award reasonable attorneys' fees and litigation costs to appellants.

Respectfully submitted,

/s/ Richard A. Allen

Richard A. Allen

Richard P. Schweitzer

ZUCKERT, SCOUTT &

RASENBERGER

888 Seventeenth Street, NW

Suite 600

Washington, DC 20006-3959

202/298-8660

/s/ William B. Rogers
William B. Rogers
Three Chopt Square
6218 North Western, Suite 200
Oklahoma City, OK 73118

July 17, 1992

CERTIFICATE OF SERVICE

This is to verify that a true and correct copy of the above and foregoing Motion to Remand was mailed this 20th day of July, 1992, to the following counsel of record:

Wilburn L. Williamson, Esq.
Dykeman, Williamson & Williamson
50 Classen Center, Suite 107
5101 Classen Blvd.
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Stanley Johnson, Esq.
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/s/ William B. Rogers
William B. Rogers

LAW OFFICES
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RICHARD A. ALLEN

October 8, 1992

James Patterson, Clerk
Supreme Court of Oklahoma
104 State Capitol Building
Oklahoma City, Oklahoma 73105

Re: National Private Truck Council, et al. v. Oklahoma Tax Commission No. 68,401

Dear Mr. Patterson:

On July 20, 1992, the appellants filed a motion to remand this case to the District Court to establish a plan of distribution of tax refunds and accrued interest, and a determination of the amount of attorneys' fees.

No other party has opposed the requested remand, which we believe is plainly warranted. Accordingly, and because further delay in resolving this case is very prejudicial to the plaintiff class, we respectfully request expedited consideration of the motion to remand.

Sincerely,

/s/ Richard A. Allen
Richard A. Allen

RAA/kak

cc: Stanley Johnston, Esq.
William B. Rogers, Esq.
Wilburn L. Williamson, Esq.
Thomas G. Ferguson, Esq.
Thomas L. Spencer, Esq.

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RICHARD A. ALLEN

December 23, 1993

James Patterson, Clerk
Supreme Court of Oklahoma
104 State Capitol Building
Oklahoma City, Oklahoma 73105

Re: National Private Truck Council, Inc. et al. v.
Oklahoma Tax Commission No. 68,401

Dear Mr. Patterson:

This letter is to draw the Court's attention to and make a further request for expedited consideration of the above-captioned case, which has been languishing before the Court for two and one-half years awaiting a purely ministerial act of remand to the District Court.

On June 28, 1991 the United States Supreme Court granted a writ of certiorari, vacated the judgment of this Court herein and remanded the case to this Court in light of the decision in *Dennis v. Higgins*, 498 U.S. ___, 111 S.Ct. 865 (1991). The effect of the U.S. Supreme Court's decision was to establish that plaintiffs are entitled to recover attorneys' fees under 42 U.S.C. § 1988, but otherwise to leave in place this Court's decision granting the plaintiff

taxpayers refunds of the motor carrier taxes that were the subject of this action.

Plaintiffs herein now seek to have the case remanded to the Oklahoma District Court solely for the purpose of petitioning for a distribution of those refunds and requesting an award of attorneys' fees. There are no other issues to be considered by this Court or the District Court.

Plaintiffs initially thought that this Court would automatically remand the case to the lower court. When that did not happen after one year from the Supreme Court's decision, plaintiffs filed a motion for remand in this Court on July 20, 1992. The Oklahoma Tax Commission did not file an opposition or any response whatsoever to that motion. When the Court still did not act, I sent a letter to you dated October 8, 1992 asking for expedited consideration of the unopposed motion.

Now, over fourteen months later, the Court still has not remanded the case to the District Court. The effect of this failure to act is to deny relief to the plaintiffs, as they are unable to obtain refunds of the taxes that this Court has declared unconstitutional. Again, the motion to remand is unopposed, and there are no legal issues for the Court to weigh. All we seek is the purely ministerial act of remanding the case to the trial court for purposes of carrying out the decisions of this Court and the U.S. Supreme Court.

I renew our request for expedited consideration of the motion to remand.

Sincerely,

/s/ Richard A. Allen
Richard A. Allen

RAA/kak
